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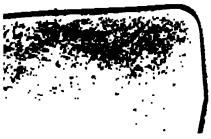
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AN

ESSAY

ON THE

EQUALITY

OF IMPRESSING

EXAMEN.



LONDON:

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AN

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ON THE

LEGALITY

OF IMPRESSING

SEAMEN.



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ESSAY

ON THE

LEGALITY OF IMPRESSING SEAMEN.

SECTION I.

Introduction.

WHOEVER conſiders the freedom of popular debate in this country, and the eagerneſs with which it occupies every topic of political inveſtigation, cannot but be greatly ſurpriſed, that the ſubject of the following ſheets has hitherto ſo little engaged the attention of the Public. To the Writer, it opens an enquiry, in which he has the wideſt field to diſplay the extent of his reſearches, to make them uſeful to his country, and to recommend himſelf to public favour. To the Orator, it preſents the choiceſt topics of popular declamation, and the faireſt matter to offer to the underſtanding, or to engage the paſſions of his audi-

Little hithe written, or ſ on the ſubje treated in th ſheets.

ence. The time and place to introduce it properly obtrude themſelves, for ever, on the view. — By what fatality then has it happened, that it is difficult to mention any point of political enquiry which has ſo little employed either the ſpeakers or the writers of this country?

Reaſon of it's being ſo much overlooked.

Two cauſes may be aſſigned for this neglect. The difficulty of the ſubject, whichever ſide of the queſtion we embrace, is not inconſiderable. However clear the argument for the legality of impreſſing ſeamen may appear, to the cool eye of the underſtanding, there is ſomething in the mode in which it is carried on, at which an Engliſhman revolts. On the other ſide; However our feelings may plead for the illegality of the procedure, and prejudice us againſt every argument offered in it's favour, yet their influence immediately abates, when one ſimple queſtion is aſked, *How would you otherwiſe man our fleet?* — The other cauſe is equally obvious, "It is (to uſe the words of the only writer againſt the legality of the impreſſing ſeamen, whom it has been my fortune to meet with, and who ſeems a very ſturdy patriot) "becauſe "the redreſs of their grievances unfortunately "gives

" gives our leading patriots no chance for " miniſterial elevation; for, if it had, (ſays " the Writer) theſe candidates for prefer- " ment might have choſen a theſis to declaim " upon, which would probably have been " more grateful to the public, than their end- " leſs harangues on Sir James Lowther's " grant;" the favourite ſubject of public oratory at the time the pamphlet in queſtion was publiſhed *."

Inquired into the laſt Seſſion of Parliament.

In the courſe of the laſt ſeſſion of parliament, the honourable Temple Luttrell moved for leave to bring in a bill for the more eaſy and effectual manning of the fleet. The honourable gentleman prefaced his motion by a long ſpeech, in which he ſtated at large the inconveniencies attending the preſent mode of manning the fleet, and ſupported his arguments by the concurrent teſtimonies of many gentlemen, chiefly of the naval profeſſion.—He particularly inſtanced many hardſhips, and even cruelties, exerciſed on ſeamen by virtue, and in conſequence, of preſs-warrants.

Lord Mulgrave replied to him at large. His Lordſhip argued ſtrongly in favour of the

* The Rights of the Sailors vindicated, page 4. *Kearſly.*

meaſure. He aſſerted it was conſtitutional, expedient, and fully adequate to produce it's end. That it was attended with no more inconvenience than is neceſſarily incident to every human inſtitution. He denied that it was productive of the hardſhips and cruelties attributed to it by Mr. Luttrel. The queſtion was put, and on a diviſion, the houſe divided, for the Ayes, 54; for the Noes, 108.

Since this, the honourable Gentleman who was the mover of the queſtion, has favoured me with a long converſation on this ſubject, and was pleaſed to let me have the reading of an account of the debate, and his intended Bill, printed immediately under his inſpection. He was alſo pleaſed to hear from me the heads of the following ſheets. The difference in our ſentiments was not ſo great as might have been expected. We agree in the main, and, indeed, the only point which theſe ſheets were written to eſtabliſh, *viz. that after every inducement is held out to the ſeaman, to make him inliſt himſelf voluntarily into the ſervice, there muſt be ultimately, ſome mode of compulſion, to produce the deſired effect.*

SECTION

SECTION II.

The State of the Queſtion.

THE Reader will pleaſe to conſider, What the Queſtion, before us, is; and to what it extends. — We do not pretend to conſider any right which Government may claim, to preſs men into the Land-ſervice; or it's right to preſs into the Sea-ſervice, others than Seamen. —The ſole object of the preſent enquiry is, the right of the Britiſh Government to impreſs Seamen into the Sea-ſervice. —— The order in which we ſhall treat the queſtion is as follows.

Manner of treating the ſubject.

Though we entirely agree with thoſe who think ſlightly of the uſe of metaphyſical inquiries on the nature and firſt principles of government; yet, on the preſent occaſion, we cannot, by any proper means, entirely diſcard them. The objection moſt obvious to the minds of the generality of mankind, and moſt frequently uſed in converſation, is the extreme hardſhip which the meaſure in diſpute brings on one particular ſet of men, excluſive of the other ranks of life. This inequality of condition appears, to many,

First Point.

many, ſo convincing an argument of the iniquity of the meaſure, which, they ſuppoſe, produces it, as to be, of itſelf, ſufficient to preclude all farther reaſoning. The fact, ſay they, is certain. You cannot deny that the impreſs neceſſarily involves one part of the ſtate in a ſcene of extreme calamity and diſtreſs. While you and the greater part of the nation are allowed to purſue the ordinary occupations and amuſements of life, a very numerous, and perhaps the moſt valuable part of the community, is expoſed to be torn from their families and friends, and irretrievably fixed in a ſtate of continual hardſhip and danger.

To meet this objection fully, it ſeemed neceſſary to reſort to the origin, and to expoſe the cauſes, of the inequality complained of. We ſhall attempt to ſhew, that an inequality of rank is inſeparable from ſociety; that, in the diſtribution of the duties of ſociety, thoſe which are the offenſive and diſagreeable public duties, (among which we reckon perſonal ſervice in the armies and navies of the ſtate,) muſt fall to the lot of that part of mankind which fills the lower ranks of life; that this mode of diſtribution, howſoever hard

hard or unjuſt it may appear to the human eye, is neceſſarily incident to ſociety in all it's ſtates; and that it is, in ſome degree, corrected by government, though a neceſſary attendant on all governments.

In the ſubſequent ſection, the third of this little work, I ſhall attempt to ſhew, that the impreſs of ſeamen is a meaſure of neceſſity and expediency, juſtifiable on both, and on either, of theſe principles; and that, in the advanced ſtate of government, which the Britiſh nation has reached, perſonal ſervice neither is nor ought to be, nor can be, the duty of every citizen. I ſhall attempt to prove this by general reaſoning, and to illuſtrate it by examples. Second Point.

In the fourth ſection, I ſhew, by the examples of ſome of the principal ſtates mentioned in hiſtory, whoſe conſtitution approaches neareſt to ours, that an impreſs is both expedient and neceſſary, to fill the armies and navies of our ſtate. Third Point.

In the fifth and laſt ſection, I ſhall attempt to prove, that an impreſs of ſeamen is a part of the common law, and often recogniſed in the ſtatute law of this realm. Fourth Point.

In

The ſubject of theſe ſheets excellently diſcuſſed by Mr. Juſtice Foſter.

In the year 1743, one Alexander Broadfoot was indicted for the murder of Cornelius Calahan, a ſailor belonging to his Majeſty's ſhip the Mortar-ſloop. The cauſe came to be tried before Mr. Juſtice Foſter, then ſerjeant and recorder of Briſtol, afterwards deſervedly advanced to be one of the Judges of the court of King's Bench. The caſe was, that the commander of the Mortar-ſloop had a warrant directed from the Lords of the Admiralty to impreſs ſeamen for his Majeſty's ſervice. Calahan was one of the crew belonging to the ſloop; and, attempting to impreſs Broadfoot by virtue of the warrant, was by him ſhot dead on the ſpot.--- But it appearing that the terms of the captain's warrant, under which this impreſs was attempted, had not been complied with, the recorder directed the jury to find Broadfoot guilty of manſlaughter. The caſe before him not coming under the general merits of the queſtion, he might have declined entering into it, had he thought proper ſo to do. But, from motives of humanity, and a deſire of ſerving the community, and preventing future ills, he entered into a very nice and a very learned diſcuſſion of the queſtion. He ſupported his opinion for the legality of the impreſs

impreſs in a moſt able manner. His argument, on this Caſe, is printed with his other excellent and valuable works. His nephew has lately favoured the Public with a new and correct edition of them, illuſtrated with many references, and ſome uſeful additions.

SECTION III.

It is a right inherent in the Government of every civil Society, to employ particular members of it in every ſervice, however hard or dangerous, which the public utility of the Society requires.

SOCIETY, generally conſidered, is the inſtitution of Nature, or an immediate conſequence of thoſe principles and affections, which we are by Nature formed to receive. Civil ſociety is the inſtitution of mankind, already united in general ſociety, by which the ſyſtem of general ſociety is diſſolved, and particular or civil ſocieties eſtabliſhed. Government implies that ſtate of mankind, in which theſe ſocieties are regulated by cer-

General Society.

Civil or Political Society.

Government.

tain orders or laws, introduced by cuſtom, or eſtabliſhed by agreement.

How Government is firſt formed.

Man, in a ſtate of Nature, enjoys independence and liberty. Something of this independence and liberty he gives up, when he enters the ſtate of general ſociety: Something more he gives up, when he enters the ſtate of civil ſociety; and ſomething more he ſtill gives up, when he receives the eſtabliſhment of government. In return, he gains, in the firſt inſtance, the general protection of the whole body, againſt thoſe who treſpaſs on his particular rights. In the ſecond, he gains this protection, not only againſt thoſe of his own ſociety, but alſo againſt all other ſocieties. In the third, this protection being more or leſs reduced to ſyſtem, he gains a more eaſy and more effectual uſe of it.

It's end.

The forms of government are as various as the circumſtances and revolutions of human affairs. They all, however, agree in this, that in all of them there is ſomewhere lodged a ſupreme authority, in whom a right of governing the whole ſociety is veſted.—Moreover, they are all eſtabliſhed to produce the

the ſame end; the good of the whole ſociety. This is the foundation, and theſe the eſſential principles, of every ſociety and government. To give them force and execution every member is obliged to contribute, by performing every action, and by receiving every reſtraint, that the call of ſociety or government orders. He is to ſacrifice convenience, comfort, life itſelf, if the welfare of the whole body require it.

The Duty of th Governed.

I apprehend, nothing of what I have hitherto ſaid will be controverted. I allow, that the utility of all is the foundation of every ſociety and government, and the principle by which the juſtice of it's operations are to be tried. It follows, of courſe, that the advantages and diſadvantages of government ſhould be equally felt by all.

How then, it is objected, is this ſyſtem of univerſal equality conſiſtent with that operation of law, the legality of which you are contending for? That while the greater part of the nation continue in the peaceable poſſeſſion of all their enjoyments, a part of them is liable to be torn away from their families and occupations, to be fixed in a ſtate

Objection again preſſing, from t great hardſhips brings on one pa ticular body of men, from whi the reſt of the community are exempt.

of the greateſt hardſhips, and expoſed to conſtant dangers.

Anſwer. This objection lies equally againſt all inſtitutions of government.

The meaſure here complained of cannot be cenſured, becauſe it is the nature of every operation of government, even of ſuch as are moſt ſalutary and beneficial, to occaſion inconvenience and hardſhip to particulars. Therefore, to aſſert that any law is in itſelf vicious, and calls for immediate repeal, merely becauſe a particular body of men are prejudiced by it, is to offer an objection which lies equally againſt every eſtabliſhment of human inſtitution, and therefore proves nothing againſt any one of them.

The queſtion now before us does not take in the utility, expediency, neceſſity, or legality of the meaſure.—Theſe are ſeparate articles, and will be treated ſeparately hereafter. — At preſent, we only conſider the meaſure with reſpect to the objection raiſed againſt it, from it's only affecting a particular body of the ſtate.

To this objection the ſhort anſwer already made may, perhaps, be ſufficient; but, to give it a more complete reply, it may be proper to conſider, attentively, the cauſe of that inequality

inequality of men to which this circumſtance complained of is owing.

Further Anſwer. From the nature of the inequality of mankind.

The hardſhip here mentioned ariſes from the inequality of mankind. This inequality is not owing to government, but is an immediate conſequence of that ſyſtem of things, by which the great Author of Nature decreed all his works ſhould, to the contracted views of men, appear regulated. One of the means by which government tries to produce it's great end, of working the good of the whole, is by ſeparating the artificial inequality which the paſſions of men have eſtabliſhed, from the inequality into which, by the immediate hand of Nature, they are framed to reſolve.

Therefore to impute to government an inequality in it's diſtribution, of advantages and diſadvantages, is to charge it with what cannot, with any juſtice, be attributed to it. It is to be attributed to that inquality of rank which always has prevailed, and always muſt prevail amongſt men. It is the decree of Nature that it ſhould be ſo. The more ſkilful, perhaps the more preſumptuous, may purſue their enquiries higher, and argue on it's

it's propriety; — I take it for granted it is juſt *.

equality of nk prevailed.

The fact, however, is certain. It is difficult to point out the nation, however rude and uncivilized, in which this inequality has not exiſted. The German leader, by his acknowledged ſuperiority of blood, and the crowd of emulous warriors fighting under his ſtandard, was not leſs a ſubject of envy to his fellow native of a meaner rank, or conſidered by him to poſſeſs leſs inviable advantages, than the man of high life is now thought to poſſeſs by him who ſcarce earns

* I am happy to find that Doctor Price, whoſe publications no one can ſuſpect of carrying the prerogatives of government too far, has laid down the doctrine I am here endeavouring to eſtabliſh, in the moſt expreſs terms. — "Free governments (ſays he) are the only governments "conſiſtent with the natural equality of mankind. This "is a principle which, in my opinion, has been aſſumed "with the greateſt reaſon, by ſome of the beſt writers on "government. But the meaning of it is not, that all the "ſubordinations in human life owe their exiſtence to the "inſtitution of human government. *The ſuperiorities and "diſtinctions ariſing from the relation of parents to their chil-"dren, from the difference in the perſonal qualities and abi-"lities of men; and from the ſervitudes founded on voluntary "compacts, muſt have exiſted in a ſtate of nature.*" See Additional Obſervations, &c. p. 20.

a daily

a daily ſubſiſtence by the ſweat of his brow *.

Every diſtinction of rank, and every difference in the ſhare of honour and hardſhips, that this ſituation gave to one man over another, was as nicely diſcriminated, and as ſenſibly felt, in that ſtate of ſociety, as the more refined diſtinctions and differences are felt in the preſent. If the arts of luxury, and the elegancies of poliſhed life, now fall to the ſhare of the few, while the many can ſcarcely earn a ſubſiſtence at the price of a thouſand hardſhips and dangers; the ſplendour of ſuperior blood, the right of primogenitor, the glory of being the prince of a numerous band of warriors, the diſtinction of having the foremoſt rank at national feaſts, the choice of the ſpoil; in ſhort, all that in thoſe times

and was ſeverely felt, in the earlieſt ſtates of ſociety.

* This is deſcribed with great accuracy, in the famous ſpeech of Sarpedon to Glaucus, in Homer. Il. xii. v. 310.

Γλαῦκε, τίη δὴ νῶϊ τετιμήμεσθα μάλιστα
Ἕδρῃ τε, κρέασίν τε, ἰδὲ πλείοις δεπάεσσιν,
Ἐν Λυκίῃ; πάντες δὲ, θεῦς ὣς, εἰσορόωσι.

"O Glaucus, why are we ſo abundantly covered with "honours in Lycia? Why have we there the firſt ſeats, "choice of food, and large goblets? and all look on us, "there, as gods?"

made

made the object of the ambition and delight of the human mind, was then ſhared in as equal diſproportion among the race of men as it is now. If we are not ſenſible of this, it is becauſe we eſtimate the ſimple and almoſt natural manners of thoſe times, by the refined and artificial feelings of the preſent.

Cauſes of this inequality.

I ſhould beg the Reader's pardon, for leading him into this path of metaphyſical ſubtlety. It ſeemed to me neceſſary, in order to give a ſatisfactory anſwer to the above objection.

All inequality of rank is founded on this, That one man poſſeſſes a larger ſhare than the reſt, or has better means than they have, of acquiring that which all equally ſeek after. Hence thoſe who cannot procure this object of their deſire, without his leave or aſſiſtance, depend upon him for it; and the meaſure of their dependence is in proportion as his leave or aſſiſtance is neceſſary to them. Superiority of underſtanding muſt, in every ſtate of mankind, give him who enjoys it an advantage over his inferiors. Superiority of bodily force, in the early ages of mankind,

was

was another ſource of advantage. Theſe being often exerciſed with injuſtice and cruelty, it was found neceſſary, for the public utility and convenience of mankind, that there ſhould, ſomewhere, be lodged a power to protect the weak from the oppreſſions of the ſtrong.

Though government and law take no notice of the inequality, and admit not of the diſtinction, between the wealthy and the poor, which is now ſo ſtrongly ſeen; though the actions they preſcribe, and the reſtraints they impoſe, are held out equally to both; yet the ſituation of human things is ſuch, that this inequality will always take place, and the upper part of mankind will ſeem privileged at the expence of the lower. Law reſpects not individuals; but as it cannot reduce to a plane the inequality in which it finds us, it ought not to be blamed, becauſe it's operations are ſeemingly more ſeverely felt by one part of mankind than by the other. It is a miſtake to think that this diſtinction, in the labours of the day, which the inſtitution of government appear to make, is an effect or operation of government: It is coeval with it, but it is not the effect of it. It is the conſequence

It has it's origin in Nature;

nowiſe imputable to government;

ſequence of that previous inequality in which Nature, when ſhe created us, meant us to ſtand; and in which Government, in it's firſt eſtabliſhment, found us placed. One of the ends of government and law, is to remove it's inconveniencies; but to attempt to remove it entirely is the wildeſt project that the human mind can conceive, and perhaps, of all the viſionary ſpeculations that enter a projector's brain, the moſt impracticable.

corrected in ſome meaſure by it; but not to be entirely removed.

I apprehend that what is here ſaid, on the cauſes of the inequality of mankind, is ſufficient to obviate any objection that can be made to the juſtice or propriety of any inſtitution of government; becauſe, in the preſent ſyſtem of things, it ſeems to impoſe on the lower rank of ſubjects a taſk of hardſhip and danger, from which thoſe of higher rank ſeem entirely exempted. I do not mean to ſay, that the government of any ſociety has a privilege of ſpreading this ſyſtem of inequality, farther than the nature or courſe of things makes neceſſary. — I only contend, that it is a neceſſary and unavoidable effect of the ſyſtem of human nature, that the advantages and diſadvantages of all human inſtitutions ſhould be unequally felt. Conſequently,

Therefore no eſtabliſhment is faulty merely becauſe it impoſes a burthen, the weight of which immediately falls on the lower ranks of life.

quently, when we object to any inſtitution, it is not ſufficient to ſhew that it has this inequality in its operations, but it is alſo neceſſary to prove, that this inequality is greater than the courſe of human things makes neceſſary, and might be remedied by other inſtitutions.

This Point further illuſtrated

To apply what has been ſaid to the queſtion before us; — Let us ſuppoſe a ſtate of ſociety in which all mankind are equal in every reſpect; that the whole body of the people delegate, to a few, power to enact laws for the good of the whole. Any exerciſe of this power, by which one particular ſet of men ſhould be placed in a ſituation ſimilar to that in which the ſeamen is placed by the impreſs warrants, would be (in my humble opinion) a mal-execution of the truſt. For no reaſon could be given, no ſtate-neceſſity pleaded, for ſuch an impartial operation. Though, even in this ſuppoſed ſtate of ſociety, ſome inequality muſt take place yet it is by no means either neceſſary or expedient that it ſhould be ſo great.

If we continue to trace the ſtate of ſociety, we ſhall find that the inequality of rank will

inevitably be greater, and more ſenſibly felt, in proportion as the ſociety advances in refinement. Perhaps the firſt advances of ſuch a ſtate may be in the article of military diſcipline. This, at once, introduces a ſyſtem of the greateſt inequality. The ſyſtem of human things admits not a more ſtriking inſtance of the unequal condition of the ranks of men; nor is it poſſible, I believe, to conceive two greater extremes, than the ſituation of a *general* and that of a *private ſoldier*. The former is ſurrounded with every allurement to pleaſure, and every incitement to virtue; is hourly ſolicited by every paſſion which the human mind wiſhes to gratify, by every delight the human frame ſeeks to enjoy, and by every virtue which humanity can attain; while the ſoldier thinks himſelf uncommonly fortunate, if he be ſupplied with a tolerable portion of the moſt ordinary nouriſhment, if his daily labour exceeds not the utmoſt of his ſtrength, and if, at night, a ſmall quantity of clean ſtraw be given him to put under his weary limbs. If a general have but an ordinary ſhare of talents and virtue, he is certain that the ſlighteſt diſplay of them will be ſplendidly rewarded; while there is not a day in which the ſoldier does not exerciſe ſome or other of the moſt uſeful virtues, if not

not always unknown, at leaſt almoſt unnoticed, and conſequently unrewarded. —

Here then we find, in a very early ſtate of ſociety, the two moſt diſtant points of inequality in the race of men. Yet, I believe, there are few perſons ſo exceedingly viſionary as to ſay, that a conſideration of this inequality ſhould induce a ſovereign (however virtuous and humane) to diſband his armies: And if reaſons of ſtate be allowed to have weight thus far, what is there to keep us from allowing them one degree farther; granting that, as no argument can prove that it is the duty of a good ſovereign to diſband the armies of a ſtate, from a view of the hardſhips of the common ſoldier, ſo no argument can prove, that the ſovereign of a ſtate has not a right to compel any individual, or any particular rank of individuals, into the ſervice, becauſe the perſons ſo compelled ſuffer hardſhips from which others, in the ſame ſtate, are exempted.

The ſame argument, which is thus offered againſt the legality of the impreſs, equally lies againſt every other inſtance of inequality, that a ſtate of government muſt always bear.

It

It equally lies againſt all unequal diſtributions of ranks, of property, of places, of honour, and truſt. Nay, it equally lies againſt the very exiſtence both of property and government. The very meaning of which words implies a prerogative enjoyed by ſome members of the community, excluſive of the reſt.

To conclude, — In the preſent advanced ſtate of ſociety, we certainly are not to form our notions of right and wrong, or to argue on the propriety or legality of any meaſure, from a view of what, in a ſtate of nature, or in the earlieſt ſtate of ſociety, would be according to our apprehenſions, the ſituation of things, and the particular rights enjoyed by individuals. — Speculations of this kind, however agreeable to the imagination, can never ſatisfy the underſtanding; — they may delude, but can never convince. In the hands of the viſionary, or of the deſigning part of mankind, they are powerful engines to eſtabliſh ſyſtems, or to raiſe diſcontents; but it will be difficult to prove, that we are indebted to them for *one* good law, or for *one* uſeful eſtabliſhment. The only topic of real argument is, whether the law or uſage complained of can be anywiſe altered for a better:

better: And whether the alteration propoſed is ſuch, as the general ſyſtem of government admits. A general change in the eſtabliſhed form of government, will never be propoſed in argument by the rational part of mankind; and no meaſure, which preſuppoſes ſuch a change or alteration, or which cannot be carried into execution without it, though it may be propoſed by the artful, or attended to by the weak, can have the attention, and ſtill leſs the approbation, of the intelligent.

SECTION IV.

It is neceſſary, and expedient, to the Britiſh Government to impreſs Seamen for the Public Service.

THE ſtrength, and even the exiſtence of England, as a nation; it's wealth, power, and happineſs; it's importance in the affairs of kingdoms; it's domeſtic welfare, and it's ſecurity from foreign enemies, depend entirely on it's navy. Whether we view it's domeſtic

The Welfare, and even the exiſtence of this nation, depend on it's naval proſperity.

domeſtic policy, or the part it aſſumes in the affairs of other nations; it clearly is a naval power. Many other cauſes may advance it's greatneſs, or urge it's fall; but while it maintains it's naval ſtrength, though it may be weakened, it will not be conquered; and though it may be much diſtreſſed, it will never be quite ſubdued: It is, therefore, the firſt duty of government to provide for it's naval eſtabliſhment, and the firſt duty of the governed, to diſcharge the obligations impoſed upon them on this account.

Our Naval Concerns have the firſt claim to the attention of Government.

Though the wiſdom of government will extend to every point which demands it's attention, and will effectually regulate all by proper and juſt proviſions, yet certainly our naval concerns have a claim to it's firſt cares; and, in caſe of any competition of objects, have the right of preference over all other concerns. No private intereſt, no public eſtabliſhment, ſhould ever be allowed to ſtand a moment againſt our naval requiſitions. Their wants muſt be firſt anſwered, their demands firſt ſatisfied.

To man our navy properly, is one of it's firſt concerns. Now, if this cannot be done but

but in the manner I contend for, the diſpute ceaſes; — that mode muſt ſtill be adopted, however individuals, however even other national concerns, ſuffer by it.

With reſpect to the preſent mode, — I beg the reader to conſider how long it has been in uſe. Though I may be wrong in placing it as high as the reader will afterwards find I date it, yet no one will deny it's having been in practice ſince the Britiſh nation has taken a part in the affairs of Europe. If we may credit thoſe who declaim againſt it, it is a practice moſt grievous, on thoſe who are it's objects; a meaſure moſt ruinous, and moſt expenſive to government, and ill calculated for the end it is deſigned to ſerve. Should a ſtranger to the affairs of Europe hear this, he would naturally conclude it had always been a topic of popular complaint, that the nation was quite ruined by it, and it's navy now no more, or mouldering to nothing in a viſible haſte. — Happily for us, neither the cauſe nor the effect exiſts. From the period I mentioned, to the preſent moment our navy has been continually advancing in every article of improvement and utility. It has now reached a point, far beyond that

The preſent mode of manning the Navy has been ſo long uſed;

has anſwered it purpoſe ſo well hitherto;

in which the moſt ſanguine fancy would have placed it a century ago, in the longeſt reach of patriotic hope. No nation but has felt it's power, or been witneſs to it's wealth.

Venimus ad ſummam fortunæ.

We ſeem to diſdain the known ocean. — We engage ſyſtematically in undertakings which the revolution of a century ſeldom ſees twice repeated, and which, by the ſpirit and conduct with which they are managed, indiſputably prove us poſſeſſed of every art and ſinew of navigation.

as not been objected to till a very late period;

During this period, the nation has engaged in many wars, and ſometimes againſt the good-liking of the people. Who knows not how ſucceſsfully ſtudious faction ever is, upon theſe occaſions, to invent new grievances, and to aggravate the old? And what arts are made uſe of to diſtreſs miniſters, even at the expence of the national welfare? Now, if the impreſſing of ſeamen were really as unconſtitutional a meaſure as it is ſaid to be, would not oppoſition, long before this time, have made this diſcovery, and uſed it for their purpoſes. Early in the firſt Charles's reign, the patriots of thoſe days engaged him in

in a war with Spain, and afterwards in another with France, and then refuſed him ſupplies to carry them on. Would they not have been equally careful to add this diſtreſs upon him, by controverting this mode of raiſing men, had they thought they had the leaſt colour in doing ſo? Yet certainly the minds of men were never more bent on diſtreſſing government, or leſs ſcrupulous in their means of doing it; more vigilant in diſcovering uſurpations of cuſtom in favour of prerogative, or more ready to publiſh them to the people.

and it's legality ſo ſeldom called in queſtion;

During this period the conſtitution has been thoroughly examined, the ſecrets of government revealed, the myſteries of prerogative ſcrutinized. How came it to be reſerved for ſo late a period to diſcover that the preſſing of ſeamen is illegal. In thoſe days, when learning ranſacked all her treaſures, to prove the moſt acknowledged rights of government ſo many encroachments on the people's liberties, no objection was ever taken to that we are ſpeaking of. Within a few weeks after the *magna charta* was ſigned, the uſual warrants iſſued for impreſſing ſeamen. Within a few years before the Bill of Rights

was preſented, the commons made it one article in the impeachment of a court favourite, that he had not, when the ſea-ſervice required, impreſſed ſeamen in the uſual manner.

hat ſtrong eſumptions a-e, that it is pedient, neceſ-ry, legal, and nſtitutional.

I do not wiſh to preſs theſe arguments farther than they carry themſelves in the minds of unprejudiced readers. I know how far they move, and ſo far only I wiſh them to have effect. But certainly a meaſure which ſo well ſerves the purpoſe it is deſigned to anſwer, can have little objection made to it's expediency: A meaſure which, though ſeemingly repugnant to the general operations of the Britiſh government, has been ſo long the cuſtom of the kingdom, can have few objections made to it's neceſſity. — In brief, a meaſure which has been ſo long adopted, and never formed inimical to the progreſs of liberty, which, till very lately, neither the patriot nor the incendiary found any thing improper or unconſtitutional, cannot but be conſonant to the genius or principles of the Britiſh government.

Here then we ſtand. Whoever objects to an uſage ſo long acquieſced in, and which has

has hitherto proved ſo ſerviceable, as a m de of ſerving an end, which muſt ſomehow or other be ſerved, ſhould have ſome other mode to ſubſtitute in it's ſtead. This is a preliminary, without which it is loſing time to liſten to any objections. The fleet muſt be manned. — The preſent method of manning it is bad. It is ruinous, inefficient, unconſtitutional. It may be ſo: — But what other ſcheme is propoſed? — 'Till ſuch other ſcheme be propoſed, and univerſally approved, the fleet muſt be manned, and we muſt continue in our old way of doing it.

No objection againſt it can be attended to, unleſs ſome other expedient be propoſed in it's ſtead.

In King William's reign, a mode was propoſed by having a regiſter. The reader will find, in the laſt chapter, an account of what paſſed in parliament upon that occaſion. It is ſufficient here to obſerve, that it did not ſucceed. One of the objections which brought the negative of the Houſe to the propoſal was, that it was inadequate to it's object.

Propoſal for a Regiſter found to be inadequate.

Another mode is often talked of in converſation, To increaſe the bounty offered to ſeamen. As to this, I cannot but obſerve, that

An increaſe of Bounty offered to Seamen would not anſwer.

that either the grievances which the common people are ſaid to ſuffer by the cuſtom of preſſing, are far from being what they are ſaid to be, or this will be a very inadequate recompence to them.

But the ſcheme is in itſelf impracticable. The merchant, by reaſon of the gains of his merchandizing, and the riches of his freight, will always offer more for ſeamen than government can. And as public and private wealth muſt, in the preſent courſe of things, move in equal pace, however wealthy government may be, the merchant will always have ability to outbid them. Any ſcheme of this nature, therefore, though it may diſtreſs the merchant, will never ſerve government.

It is alſo an expence to which no government is equal, to ſupport, in times of peace, the ſame naval eſtabliſhment it maintains in time of war. The military peace eſtabliſhment of every European power is an heavy charge upon the public; and only juſtifiable as a precaution againſt any ſudden effort of a neighbouring ſtate. To add to this weight would be a ſtrange ſoleciſm in

in politicks. To ſee, therefore, the impracticability of any propoſal of this nature, it is only neceſſary to conſider the inſupportable burthen it muſt of courſe bring upon the public.

Beſides as upon theſe occaſions the men required muſt be ſuch as are ſomewhat converſant in the buſineſs, the only perſons who can anſwer the wants of government, are thoſe whom merchant ſervice has already inſtructed.

The Men required muſt be thoſe whom merchant ſervice has already inſtructed.

" By this means (ſays Mr. Juſtice Fo-
" ſter) the trade of the nation becomes
" a nurſery for her navy; and the Merchant
" while he is increaſing the wealth of the
" kingdom, is at the ſame time training up
" the mariner for it's defence.

Excellent obſervation of Mr. Juſtice Foſter.

" And as for the mariner himſelf (conti-
" nues the ſame excellent Author), he, when
" taken into the ſervice of the Crown, only
" changes maſters for a time. His ſervice
" and employment continue the very ſame,
" with this advantage, that the dangers of
" the ſea, and enemy, are not ſo great in
the

"the ſervice of the Crown, as in that of the "Merchant."

Again.—Perſonal ſervice is the only ſervice by which the poor man can diſcharge his obligation to his country. Thoſe who ſuppoſe that, by the laws of ſociety, all the members are equally called to do perſonal ſervice, apply a law incident to ſome ſtates of ſociety, to ſociety in general, and to all it's ſtates. In an early ſtate of ſociety, as ſoon as war is declared, every one is a ſoldier. All take to arms, and join the battle. Thoſe days are now no more.—In military governments, when the only road to the ſmiles of the prince, or the favour of the public, is military proweſs and renown, military ſervice will always be an object of ambition, not a point of conſtraint.—But, happily for us, this is not our form of government.—We are a country founded on commercial principles, and the welfare of the nation is too intimately connected with the welfare of its commerce to bear even a temporary ſeparation. Our ſyſtem of government is in a very high degree of political refinement. Government, therefore, alſo claims a great ſhare of our attention. To allot to any one,

or

or to either two of theſe objects, all our attention and powers would be the ruin of them all. It is endleſs to repeat what has been already ſaid reſpecting the inequality of rank. So while the noble and moſt opulent of the nation contribute to it's welfare, by the part they take in it's government, and by the taxes raiſed from their property; the merchant, by extending it's commerce, and by the duties raiſed upon his merchandize; the poor man (but not the leaſt valuable) pays his contribution in perſonal labour and ſervice.

I ſincerely wiſh it was in my power to invent any mode of manning our fleet leſs burthenſome than the preſent upon the poor man. I wiſh it were in my power to call the diſſipated and the luxurious to a view of *his* hardſhips. The man that would effectually employ himſelf in the attempt, would deſerve highly of the public. Should his endeavours prove ineffectual, ſtill his intentions would deſerve our warmeſt thanks. But to draw theſe hardſhips in colours much ſtronger than their reality exiſts in nature to be for ever preſenting them to the poor ſufferer's eye, with every aggravation that art or elo-

quence can join to them, is, (to ſpeak in the gentleſt terms) a very injudicious and improvident proceeding.

I ſhall conclude this ſection with the expreſſion of a writer, whom no one will ſuſpect of holding doctrines unpalatable to the body of the people, unleſs ſtrongeſt conviction made him think it unavoidable, and who certainly poſſeſſed (if ever man did) what another perſonage * of far moſt amiable celebrity deſcribes, the art of ſeeming to guide when one only follows: — "Let bounties, "ſays Junius, be encreaſed as far as the pub-"lic purſe can ſupport them, ſtill they have "a limit; and when every reaſonable ex-"pence is incurred, it will be found, in "fact, that the ſpur of the preſs is wanted "to give operation to the bounty."

But, with reſpect to any intermediate ſteps which may be taken, or any greater inducement which may be held out, to ſeamen, to make them enter voluntarily into the ſervice, it would be improper, here, to take them into conſideration. The author cannot but think himſelf perfectly incapable of any diſ-

* Mr. Burke, ſpeaking of the late Right Honourable Charles Townſend.

cuſſion

cuſſion of this nature. The only point which is his intention to inveſtigate is (as he before obſerved) the propriety and legality of the impreſs, *as a meaſure to be uſed in the laſt reſort*; a mode to *compel* the ſeaman into the ſervice, when every poſſible mode has been uſed to invite him to enter voluntarily, and is found inſufficient.

SECTION V.

That the Impreſſing Men for the Public Service is a Meaſure of Neceſſity and Expedience, and that the Duty of perſonal Service muſt fall on the lower Rank of Men, as ſoon as a Nation becomes wealthy, and attends to Commerce, ſhewn by the Examples of ſome free States, antient and modern.

AS nothing gives ſo much force or colour to argument, as illuſtrating it by examples, it is not to be wondered that almoſt every writer, be his ſubject what it will, has recourſe to their aſſiſtance, whenever he thinks he can make them either of uſe or ornament. But this has been ſo much abuſed, that it is now become almoſt as ungrateful to mention in writing the Greeks and Romans, as it is

diſguſting (if we credit our late noble epiſtolariſt) to mention them in converſation. In the preſent inſtance, however, it is ſo neceſſary, that we hope the moſt faſtidious reader will excuſe the few pages which compoſe this ſection, though he ſees the Greek and Roman name there often repeated.

Greece. I begin with Greece. Thucydides takes notice, that it was ſometime after the taking of Troy that the Greeks applied to ſhipping and naval affairs. As the ſeveral ſtates of Greece advanced in ſtrength, and the refinements of policy, there was a competition among them for the empire of the ſea. I ſtate theſe facts, to ſhew how far a juſt inference lies from the example of their inſtitutions in naval affairs. This empire conſiſted in the number and force of their veſſels, and ſkill in navigation. Their ſhips took all the ſea, from the iſlands of Crete and Rhodes, to the Cyaneans iſlands, the furthermoſt field of their expeditions towards the weſt was the Ionian ſea. This empire paſſed in ſucceſſion through many hands. The Athenians and Lacedemonians often contended for it. The latter people I ſhall here paſs over. Their thorough contempt of commerce takes off all reaſoning by analogy

logy from their example. But if there is, in the ſcroll of hiſtory, any nation whoſe reſemblance to us invites us to this mode of reaſoning, it is the Athenian. In the ſpirit of their government they much reſembled us. In their jealouſy of any attempt on their liberties, in their eaſy faſcination to every artful demagogue, they reflect us. — Like us, they were a naval power, and addicted to commerce. So that if we can prove the impreſſing of ſeamen was one of the eſtabliſhed methods of manning their fleet, and that it fell on the lower rank of the ſtate, it goes far to prove that, in every naval and commercial ſtate, it is a meaſure of expediency and abſolute neceſſity.

The people of Athens were divided by Solon into four ranks. The original laws of Athens, like our laws, preſcribed military duty as a general ſervice, and never pointed out any particular ſet of men to execute it. But when it's advanced ſtate of refinement and wealth introduced the various deviſions and ſubdiviſions of rank, the article of perſonal ſervice naturally fell on the lower ranks. Biſhop Potter, in his learned Archæologia, obſerves, That, among the primitive Greeks, the levy was frequently made out by lots, every

very family being obliged to furniſh out a certain number, and filling up their proportion by the chance of lots. Afterwards the magiſtrates appointed thoſe who were to go to war. — But, in the latter period, thoſe who ſerved in the armies received a pay, which was raiſed by a tax on the whole commonwealth, and when this was found inſufficient, by a tax on the richer part, and the men of quality. Thus, by the natural effect of wealth, the burthen of the day in public ſervice fell on the poor. So we find in Thucydides that, even upon an extraordinary preparation, the perſons of the firſt and ſecond claſs were exempted. I quote the words, αἰσθομενοι δὲ αὐλευς οἱ Αθηναῖοι διὰ καλάγνωσιν ἀσθενειας σφῶν παρασκευαζομένους, δηλῶσαι βουλόμενοι ὅτι οὐκ ὀρθῶς ἐγνώκασιν, ἀλλ' οἷοί τε ἰσὶ, μὴ κινοῦντες τὸ ἔπι Λέσβω ναυτικον, και τὸ ἀπὸ Πελοποννήσου ἐπιοὺ ῥαδίως ἀμύνεσθαι ἐπλήρωσαν νᾶυς ἑκατὸν, ἐσβάσεις αὐτοί τε, πλὴν ἱππέων, και πεντακοσιομεδίμνων και οἱ μέτοικοι. "When the Athe-
" nians found that ſuch preparations were
" made againſt them, as an avowed inſult
" on their imagined weakneſs, they had a
" mind to convince their foes that ſuch
" imaginations were erroneous, and that
" they were able, without countermanding
" their fleet from before Leſbos, to make
" head

" head againſt any force that could come
" from Peloponneſus. Accordingly, they
" manned out an hundred ſhips, obliging
" all, as well ſojourners as citizens (thoſe
" excepted of the firſt and ſecond claſs) to
" go on board." Smith's Tranſlation *.

I proceed to ſpeak of the Romans. Their levies were carried on with ſo much ſtrictneſs, that a perſon refuſing to enter the ſervice, or aiming to avoid it by the ſlighteſt ſubterfuge, incurred the ſevereſt penalties. We read in Valerius Maximus, that, in the war againſt Pyrrhus, the people being extremely averſe to the ſervice, one of the conſuls went to the capitol, according to the uſual ceremony, to open the muſter, and the perſon whoſe name was firſt read not anſwering, he immediately ordered him to be ſold, ſaying, that the republic was better without the citizen that knew not how to obey. Romans.

In the Roman republic, where foreign commerce was, till a late period, little practiſed, and was never the road to honours or

* Thucidides, book iii.

glory,

glory, and where, till it's very lateſt period, even the elegant arts were held in the greateſt contempt, as the ſole object of the ambition of the citizen was military diſtinction, there would be no need of compulſion, except in ſome very particular times, to fill any compliment of troops, that the ſervice of the republic might demand. But in the Roman republic, as in every other ſtate, when wealth was introduced, and, with it, it's conſtant concomitants, luxury and a love of eaſe, the numbers who ſhrunk from the duty of perſonal ſervice increaſed every day. Wealth, then, became an object of ambition; but, as wealth was then obtained by military ſucceſs, not by the arts of commerce, war and arms ſtill continued the chief, though not the ſole, profeſſion of a Roman citizen. Thus, even their navigation and commerce were made entirely ſubſervient to their military aims, and their medals ſhew that they cultivated navigation with a view of extending their arms, and that commerce was it's leaſt object. But, notwithſtanding this, thoſe among the opulent, who wiſhed more to enjoy than to acquire, uſed the prerogative which wealth muſt always give to exempt themſelves from perſonal

perſonal attendance; which, however, ſtill remained a neceſſary, and an unavoidable duty and obligation on the poor. This is very clear, from the many invectives which Salluſt has ſtudiouſly interwoven in his hiſtory againſt the nobility. "The nobles, "(ſays he in one place) being united in "themſelves, enjoyed great advantages; "the force of the people, disjointed and "diſperſed, loſt much of it's real powers. "The civil and military were entirely at the "direction of the few.—By them, the trea-"ſury, the provinces, the offices of the re-"public, it's honours, it's triumphs, were "entirely ingroſſed. Warfare and want "were the lot of the people. The ſpoil of "war went to the chief in command, and a "few individuals: Meanwhile the parents "of the ſoldiers, and their infant children, "were driven from their homes, at the "mercy of every more powerful neigh-"bour." Marius, in his ſpeech to the people, deſires them to conſider with themſelves, "Whether it were better for them "to have, for their general, one choſen "from the body of the nobility, a man of "antient blood, and ſplendid deſcents, but "at the ſame time, one who had never ſeen

" the ſervice,—and who would be neceſſi-
" tated to enquire his duty from a common
" man, like themſelves."

I could crowd in numberleſs other quotations equally appoſite to the fact in queſtion. But, I hope, thoſe I have inſerted are ſufficient to ſhow, that however high-ſpirited and fond of arms a nation may be, ſtill ſome coercion is neceſſary to bring them regularly to the field: And alſo to ſhow that the only perſons affected by this coercion muſt, in all ſtates, when the purſuits of wealth once obtain a footing, be thoſe that make up the lower rank *.

* The Author of a work, which (ſetting aſide the religious principles it is ſuppoſed to contain) has received the moſt univerſal, and, at the ſame time, the higheſt tribute of praiſe, which has been given to any work in this century: The continuation of which is the moſt intereſting object the literary world now has in attention; Mr. Gibbon, in the firſt chapter of his Hiſtory of the Decline and Fall of the Roman Empire, deſcribes, with his uſual elegance and unaffected rapidity, the revolutions which took place in the military hiſtory of the Romans. As this part of his work is very pertinent to the preſent ſubject, and as it would be an injury, both to the excellent Writer and the Public, to give it otherwiſe than in the Writer's own words, I beg leave to refer the Reader to it.

" In the purer ages of the common-wealth, (ſays he)
" the uſe of arms was reſerved for thoſe ranks of citizens
" who had a country to love, a property to defend, and
" ſome ſhare in enacting thoſe laws, which it was their
" intereſt,

In every period of our own hiſtory, the lower claſs of the nation has always had perſonal ſervice, and every other office of hardſhip and danger, allotted to them. Very ſoon

" intereſt, as well as duty, to maintain. But, in pro-
" portion as the public freedom was loſt in extent of
" conqueſt, war was gradually improved into an art, and
" degraded into a trade *. The legions themſelves, even
" at the time when they were recruited in the moſt diſ-
" tant provinces, conſiſted of Roman citizens. That diſ-
" tinction was generally conſidered, either as a legal qua-
" lification, or as a proper recompence for the ſoldier;
" but a more ſerious regard was paid to the eſſential me-
" rit of age, ſtrength, and military ſtature †. In all
" levies, a juſt preference was given to the climates of
" the North over thoſe of the South: the race of men
" born to the exerciſe of arms, was ſought for in the coun-
" try rather than in cities; and it was very reaſonably
" preſumed, that the hardy occupations of ſmiths, car-
" penters, and huntſmen, would ſupply more vigour and
" reſolution, than the ſedentary trades which are em-
" ployed in the ſervice of luxury ‡. After every quali-
" fication of property had been laid aſide, the armies of
" the Roman emperors were ſtill commanded, for the
" moſt part, by officers of a liberal birth and education;
" but the common ſoldiers, like the mercenary troops of
" modern Europe, were drawn from the meaneſt, and
" very frequently from the moſt profligate of mankind."

* The pooreſt rank of ſoldiers poſſeſſed above forty pounds ſterling, (Dionyſ. Halicarn. iv. 17.) a very high qualification, at a time when money was ſo ſcarce, that an ounce of ſilver was equivalent to ſeventy pound weight of braſs. The populace excluded, by the antient conſtitution, were indiſcriminately admitted by Marius. See Salluſt. de Bell. Jugurth. c. 91.

† Cæſar formed his legion Alauda, of Gauls and ſtrangers: but it was during the licenſe of civil war; and after the victory he gave them the freedom of the city, for their reward.

‡ See Vegetius de Re Militari, l. i. c. 2.---7.

after the Norman conqueſt, arrere vaſſalage, or the practice of ſubinfeudation, was eſtabliſhed, and one of the cauſes of that eſtabliſhment was (ſaid Mr. St. John, in his argument on the Caſe of Ship-money), that thoſe who held immediately of the Crown deſired to free themſelves of the burthen of ſervice; and their feoffees, in conſequence of the conveyance to them, took the whole burthen thereof upon themſelves *.

Lower Empire.

The ſyſtem adopted in the lower empire was very ſimilar to that which has hitherto prevailed in England. The Theodoſian Code, and the body of the Civil Law, are full of the great attention which the Conſtantinopolitan emperors paid to naval affairs, which their ſituation, and the rival power of the Saracens and the town of Great Cairo, built by them, compelled them to exert with the greateſt vigilance. They entertained, in different places, various fleets, and granted moſt valuable privileges to thoſe to whoſe care they were intruſted, and afterwards admitted them of the equeſtrian order.

They were united in a body, not unlike our trading companies, each individual trad-

* See State Trials, new edit. p. 519.

ing

ing on his own bottom. They were ſtationed in different parts of the empire, and employed both in public ſervice, and in the private trade of individuals. The public buſineſs was divided between them; ſuch voyages as were to be taken on the public account, they undertook in ſucceſſion one after the other, by which means each of them had his ſeveral ſhare of the general burthen, and his ſtated times to attend to his own private concerns. The profeſſion, or trade of mariner, was annexed to moveable and immoveable property, and annexed to the property, not to the perſon, of the proprietor. This was ſo eſſential a condition to the holding of that property, that no honours of the republic, not even the Emperor's own reſcript, could ſeparate them; and nothing could avoid it, but an uninterrupted poſſeſſion of 50 years. What was this moveable and immoveable property, to which the condition was annexed, or how it was created, it were needleſs to ſhew.

When they were employed on the public ſervice, it was unlawful for them to load their veſſels with private merchandize. But at other times they were allowed to trade on their own account; yet ſo that, if the public

lic ſervice required it, they were immediately to employ themſelves in it: Thus the Emperors Arcadius and Honorius expreſs themſelves. "As we do not forbid individuals keeping veſſels, ſo as they do not uſe this leave to defraud the public; it being their duty, if neceſſity calls for them, to attend to the public concerns *."

Venetians.

Of the many ſtates which date their origin from the decline of the Roman empire, none more deſerves the attention of the Reader than the Venetians. The wiſdom, and the peculiar form of their government, the degree of power and wealth which they long enjoyed, and a ſpirit of patriotiſm, which would reflect honour on any nation, and for which they are deſervedly renowned, force our eſteem and admiration. Though they

* See Cod. Theodoſ. lib. xiii. tit. 7. c. 2. under the articles *De Naviculariis*, *De Prædiis Naviculariorum*, *De Navibus non excuſandis*, *et De Naufragiis*.

The late Dr. Jortin, whoſe claſſical taſte and great erudition are very well known, ſtrongly recommended the reading of the Codex Theodoſianus, as a work which throws the greateſt light on the hiſtory and the antiquities of the Lower Empire. It's merit (taken in this light) is conſiderably inhanced by the valuable edition of it publiſhed by James Gothofred, with ample notes and illuſtrations. This edition was the labour of thirty years intenſe application; and no one (ſays Baillet *Jugement des Sçavans*) thinks the editor loſt his time.

were

were far from enjoying political liberty in the perfection we do, yet they enjoyed it in a high degree. The ſyſtem of repreſentation, which ſome writers have not ſcrupled to call a very moderate diſcovery, was in uſe with them from the earlieſt time of their having a regular government till the ſeventh century. The alteration which then took place was by introducing the Doge as a prince or chief, over all other magiſtrates. The Doges, in later years, abuſed their power greatly, and aimed at ſovereignty, but the people prevailed in this conteſt; — and, about the end of the twelfth century, a revolution was effected, which was originally deſigned in favour of the people, but ended, as moſt revolutions do, in placing them in a much worſe condition than they were in at firſt. The power of the Doge was indeed taken away, but very ſoon afterwards the national council, which before was elected annually, was made permanent; by which the conſtitution fell into an ariſtocracy, in which it has ever ſince remained. But, in every period of the Venetian hiſtory, this infringement of the liberty of individuals, as it is called, was practiſed. I appeal to every perſon converſant in the hiſtory of the world, in the times of the

Lower

Lower Empire, Whether, on every preparation for war, one of the firſt things done be not to arreſt all merchants ſhips, and employ them, and all the men on board them, in the public ſervice; and this was as much practiſed by the Venetians as by any other ſtate. Their hiſtory is full of the complaints of merchants for the detention of their ſhips on the public uſe. They carried this farther, and in a manner much more oppreſſive than we do. We confine the preſs, unleſs a want of men be very ſeverely felt, to homeward bound ſhips. They equally exerciſed it on the outward and homeward bound.

General Remarks on the Authority of the Civil Law.

The inſtances I have here adduced ſhew clearly that the Spur of Compulſion, to repeat Junius's elegant idea, is neceſſary to give force to every other operation that policy can invent to invite men to the ſea ſervice. The example I have quoted from the conſtitution of the Greek emperors may loſe ſome of the weight it ſhould otherwiſe have, on account of the prejudices which are uſually entertained againſt the civil law, on which they are founded. — In anſwer to this, we beg leave to remark, that we do not by any means pretend to cite any inſtitution

tution of the civil law but as a matter of argument. The greateſt admirers of the Britiſh conſtitution, and thoſe who have contended moſt warmly for the preference of the Common over the Civil Law, allow the latter the higheſt praiſe, as a collection of Written Reaſon; as uſeful and ornamental to the ſcholar, the divine, the ſtateſman, and even the common lawyer *; as a material cauſe of the revival of letters, and of eſtabliſhing more juſt and liberal ideas than had before obtained of the nature of government, and the peace and order of ſociety †. It's inſtitutions, however cenſurable as giving unlimitted and abſolute power to the emperors, were certainly ſalutary and beneficial to the lower ranks of life; — and whoever ſuppoſes it contains little more than a regular ſyſtem of arbitrary power and oppreſſion, muſt be little converſant with it's contents.

* Blackſtone, Int. § 1.

† See Robertſon's Hiſt. of Cha. V. vol. I. § i. art. 6. See alſo Dr. Hallifax's Preface to his Analyſis of the Common Law.

SECTION VI.

That the Right of Government to impreſs Seamen for the Public Service, is not againſt the Conſtitution of this Realm; and that it always made a Part of our Common Law, and is repeatedly recogniſed by our Statute Law.

THE Reader may obſerve, that I aſſert the practice of impreſſing to be both Legal and Conſtitutional. By Legal I mean, that it has the ſanction of law; by Conſtitutional, that it is congenial with the ſpirit of the conſtitution. I apprehend it is poſſible to be the one, without being the other. The legiſlative power may chance to paſs a law, which experience may afterwards ſhew to have been repugnant to the genius of the conſtitution. So the genius of the conſtitution may require ſome additional inſtitution to be paſſed into law, or ſome eſtabliſhed inſtitution to be abrogated, without attracting the attention or aſſiſtance of the legiſlature. I wiſh to impreſs the Reader with this obſervation, becauſe I think much of the perplexity which is generally found in the diſcuſſion of political queſtions might be avoided by attending to it. Thus, when we ſhall endeavour to prove that it is legal, it will be by

Difference of the Meaning of the words Legal and Conſtitutional.

by no means a proper anſwer to aſſert, that it is unconſtitutional. In the ſame manner, I think it no anſwer to the aſſertion of it's being unconſtitutional, to produce one poſitive law in it's behalf. — They are therefore ſeparate articles: But the examining either of them reflects light upon the other.

I ſhall begin by proving the practice in queſtion to be conſtitutional.

First Point. That the Practice of impreſſing Seamen is conſtitutional.

Preſſing, or, in other words, obliging perſons to ſerve the public contrary to their will, appears throughout our conſtitution in a variety of forms. It is impoſſible to point the time when it did not exiſt. It is the nature of all government, that ſome of it's offices ſhould be the objects of the ambition, others the objects of the diſlike, of the individuals governed. To ſome of them is annexed whatever attracts the wiſhes of the human heart; to others, expence, labour, and danger are inſeparably joined. The latter are not leſs neceſſary to the exiſtence of government than the former. But as individuals ſeldom poſſeſs the etherial ſpirit of patriotiſm in a ſufficient degree to make them ſeek, by their own choice, the latter objects, it is abſolutely neceſſary that go-

The circumſtance of preſſing appears throughout our conſtitution in a variety of forms.

vernment ſhould have recourſe to compulſory methods. What was originally the election of members to ſerve in parliament, but impreſſing ſuch perſons as were deemed qualified by fortune and abilities to perform the public buſineſs *? For doing this duty they received a ſtated ſtipend; againſt it they had no negative. Where would our conſtitution have been if, in thoſe days, the language which now is uſed by the adverſaries of the preſs, had been uſed by the wealthy commoners, and met with it's deſired effect? What is at preſent the obligation to ſerve the office of a ſheriff, but being preſſed to a ſervice of fatigue, expence, and even of danger? To perſons of inferior rank, are not the ſerving the office of a juryman, a church-warden, a conſtable, or any other pariſh-office, all different ſpecies of preſſing, all of inconvenience, ſome of danger, to the parties? Yet ſociety could not exiſt without ſuch ſervice. And has not the ſheriff a right, on certain occaſions, to raiſe the *poſſe comitatus*? and what is this right, but a right to preſs every male in his county above fifteen years

* "Their attendance was, for a long time, deemed a "burthen both to themſelves and their conſtituents." Ruffhead's Preface to his edition of the Stat. p. xii. See Prynne's Animadverſion on the 4th Inſt. p. 32. Maddox's MSS. in the Britiſh Muſæum, No. 13. Title *Parl.*

of

of age (peers excepted), who are obliged to attend under pain of fine and impriſonment? And has not the Militia Act made every man liable to ſerve as a ſoldier, and, at times, ſubject to the articles of war?

Of all perſons preſſed into public ſervice, the ſeaman is the leaſt oppreſſed.

I muſt here beg leave to introduce a reflection. — Of all the different perſons forced into the ſervice of the public, the ſeaman is, perhaps, the leaſt injured. Thoſe who hear nothing of preſſing but what is told them in the declamations of it's adverſaries, will not be a little ſurpriſed at this aſſertion. They think every impreſſed ſeaman the moſt miſerable object in human nature, and that the wrath of heaven and earth is at once deluged upon him. Torn, in the moment of his return from a long voyage, full of the hope of ſeeing his family and friends, his affectionate parents, a fond wife and lovely children, forced upon a long and perilous voyage, expoſed to innumerable hardſhips and dangers. Such is the picture they have been taught to frame to themſelves of every impreſſed ſeaman; but ſuch a circumſtance does not exiſt; or, if it does exiſt, it exiſts ſo ſeldom as to deſerve no attention.

In the firſt place, generally ſpeaking, what is the condition of this man? Is he not like a ſhop-

a ſhop-keeper, choſen into the Militia, and forced to learn a new trade. He is only obliged to labour at that employment which he has choſen, and which he knew was ſubject to this call; — a call which, ninety-nine times out of an hundred, ſnatches him from diſeaſe, from miſery, or perhaps an ignominious death; the inſeparable attendants of idleneſs, intemperance, and bad company. For the truth of this obſervation, I appeal to every one converſant with the manners of ſeamen whilſt on ſhore, or who has ever viſited the purlieus of Wapping, Rotherhithe, or the Point at Portſmouth.

But ſuppoſe the perſon preſſed ſhould happen to be that *rara avis*, a prudent ſeaman, he is far from being injured: For though, perhaps, his wages are ſomewhat lower than thoſe given by merchants, yet that is amply compenſated by his chance of prize-money; in the meantime he is better fed and cloathed, better lodged, and endures fewer hardſhips, than he would on board a merchant-man. If he have a family, he has an opportunity of regularly remitting to them part of his pay for their ſubſiſtence, and is beſides reſtrained from riotouſly waſting it, and obtains

tains a right to a comfortable proviſion for his old age in Greenwich hoſpital. It may be aſked, that if all this be true, what makes ſeamen ſo averſe to the King's ſervice? The anſwer is, the ſtrict diſcipline kept up on board the King's ſhips, whereby they are prevented from running into thoſe irregularities and debaucheries, of which ſeamen are ſo peculiarly fond, and which proves ſo fatal to them.

I think I have now fully ſhewn, that compulſion to public ſervice is perfectly congenial to the ſpirit of the Engliſh conſtitution; that it does not fall ſo hard upon the ſeaman, as the compulſion to ſome other duties does upon their immediate ſubjects; and that it is not ſo very great a calamity upon him as it is ſome times thought to be. What has been here ſaid might, perhaps, have been more regularly inſerted in a former ſection; but as I have found that the nature of this queſtion is ſuch, that however cogent the argument in favour of the legality of the impreſs may be, the conſtant anſwer to it is, by appealing from the underſtanding to the feelings of the heart, I was willing to meet this anſwer with a proper reply.

Another

Another objection made to the practice in queſtion is, by aſking, What is the difference between the preſs-warrants and the warrants for ſhip-money? The anſwer is plain, the raiſing of money for the expences of the fleet can be carried on in a much better mode. It has not therefore the plea of neceſſity or expediency. But, ſay they, the precedents for ſhip-money are as ſtrong, as numerous, and as unvariable, as the precedents of impreſſing men. I contend they are not ſo ſtrong, ſo numerous, or ſo invariable. The reader will ſhortly ſee the nature of the precedents I mean to adduce. It is not here the place to enter into the queſtion of ſhip-money. I ſhall content myſelf with producing the ſentiments of one whom no one will accuſe of prejudice againſt the Houſe of Stuart, and whoſe learning and penetration are unqueſtionable.

" In moſt national debates, though the
" reaſons may not be equally balanced, yet
" are there commonly ſome plauſible topics,
" which may be pleaded even in favour of the
" weaker ſide; ſo complicated are all human
" affairs, and ſo uncertain the views which
" give riſe to every public meaſure. But it
" muſt

"must be confeſſed, that, in the preſent age, "no legal topics of any weight can be "thrown into the oppoſite ſcale. The im- "poſition of ſhip-money is apparently one "of the moſt dangerous invaſions of nati- "onal privileges, not only which Charles "was ever guilty, but which the moſt ar- "bitrary princes in England, ſince any li- "berty had been aſcertained to the people, "had ventured upon. In vain were prece- "dents of antient writs produced: Theſe "writs, when examined, were only found "to require the ſea-ports, ſometimes at "their own charge, ſometimes at the "charge of the counties, to ſend their "ſhips for defence of the nation, when the "prerogatives which impowered the crown "to iſſue ſuch writs was aboliſhed, and it's "exerciſe almoſt entirely diſcontinued, from "the time of Edward III.; and all the "Authority which remained, or was af- "terwards exerciſed, was to preſs ſhips in- "to the public ſervice, to be paid for by the "public. How wide were theſe precedents "from a power of obliging the people, at "their own charge, to build new ſhips, to "victual, and to pay them, for the public; "nay, to furniſh money to the crown for

"that purpoſe? what ſecurity either againſt "the farther extention of this claim, or a- "gainſt diverting to other purpoſes the "public money ſo levied? The plea of ne- "ceſſity would warrant any other taxation, "as well as that of ſhip-money; and it was "difficult to conceive the kingdom in a ſi- "tuation when that plea could be urged "with leſs plauſibility than at preſent; and "if ſuch maxims and ſuch practices pre- "vail, what has become of national liberty? "What authority is left to the Great Char- "ter, to the Statutes, and to that very Pe- "tition of Right, which, in the preſent "reign, had been ſo ſolemnly enacted, by the "concurrence of the whole legiſlature?" *

Another objection to it's conſtitutional exiſtence is made, by ſaying, that it does not exiſt in the moſt arbitrary countries. But I believe there is little force in this objection. In France, confeſſedly the mildeſt of all arbitrary government, the fleet is manned by a procedure much more oppreſſive on the ſeamen than ours. Every ſeaman is obliged to regiſter his name, and the ſhip in which

* Hume's Hiſtory of England, Vol. VI. p. 318.

he

he ſerves. Being thus entered, he can never leave the ſervice, or change his ſhip, without formal notice, and receiving leave, and without ſignifying the ſpot on which, ſhould his ſervice be at any time wanted for the public, he is to be found. To fail in any of theſe forms, brings on a ſevere puniſhment. To be ſure, a ſet of men armed with bludgeons do not walk about the purlieus of the ſeamen, ſearching for thoſe upon whom they are to execute their warrants; — but with them, as ſoon as the commiſſion is iſſued, all the ſeamen are to fly immediately to the place of rendezvous: If they fail in this, they incur nothing leſs than the penalty of death. When this is underſtood, we are very willing to allow the objection, — Preſſing, as it is practiſed by us, does not exiſt in arbitrary countries.

I come now to ſhow, that it has always been in uſe in England, and I hope to ſhow, that it has always made a part of the Common Law, and that it is as much recogniſed by the Statute Law as any inſtitution can be, which does not immediately owe it's inſtitution to it. I hope to make it clear to the candid Reader, that it is coeval with our

government, and has been exerciſed in every period of it. And, in doing this, I ſhall accompliſh the remaining part of the queſtion, by ſhowing that it has always made a part of the Common Law, and is clearly recogniſed by the Statute Law.

2d Point. That it is legal.

I am now entering on the moſt difficult part of this little Eſſay. I hope I have ſhown to the Reader's ſatisfaction, that the impreſs of ſeamen, with reſpect to the hardſhips brought thereby on a particular body of men, is not repugnant to the original laws of a free ſociety, or government: That in the period of refinement, which this nation has long ſince attained, and the particular circumſtances of being a commercial ſtate, which it has long enjoyed, perſonal ſervice in the navy, in times of war, cannot be the obligation of any but of the loweſt rank of men: — That perſonal ſervice is a duty incumbent particularly on the ſeaman; and that, after every inducement is uſed to invite him to enter into the ſervice of his own free accord, ſome mode of compulſion is ſtill neceſſary. — I now proceed to ſhow, that compulſion, otherwiſe preſſing into the ſervice, has, from time immemorial, been

an

an uſage, and made part of the Common Law of this realm.

Perſons unacquainted with the conſtitution of this kingdom, are apt to ſuppoſe that no eſtabliſhment can have the force of law, unleſs it had been formerly, and in direct terms, paſſed into a law by the legiſlature. It is neceſſary to acquaint ſuch perſons, that the greater part, by far, of the laws of this kingdom lies in cuſtom, and that no proof, but immemorial uſage, can be given of their being laws. To inſtance one of the many ſtriking examples of thoſe laws, the courſe in which lands deſcend by inheritance is governed entirely by laws of this nature, and is not ſettled by any poſitive law, diſcoverable at this day. At firſt, it was not practiſed as it now is; but having been in ſome meaſure practiſed on a particular emergency, and found a ſalutary meaſure, it was repeated. This repetition produced another, perhaps with ſome amendments. In this courſe it proceeds till it's origin is forgot. This is, generally ſpeaking, the proceſs of the greater part of the laws of every country; for, in all countries, beſides the body of written, or as we call it Statute

Preſſing Seamen, beſides immemorial uſage, repeatedly recogniſed by the legiſlature.

Statute law, there is a collection of unwritten uſages, of equal force with theſe written laws, and which anſwer to what we call the Common Law. But the legality of impreſſing of ſeamen has the addition of one very ſtrong circumſtance of proof, which is wanting to many other parts of the common law; that it is very early taken notice of, and, in ſome meaſure, modelled by the acts of the legiſlature. This will be more fully ſhewn hereafter.

The Naval Hiſtory of the Nations before the Arrival of the Saxons, not of Conſequence, as to the Point in Queſtion.

In regard to the ſtate of the nation before the arrival of the Saxons, no facts, I apprehend, can be mentioned, and no reaſoning allowed which can throw any light on this ſubject. In thoſe days, every man was a warrior; compulſion, therefore, to perſonal ſervice in military expeditions, was not only not neceſſary, but abſolutely unknown. — The employment of tillage, and every other occupation which kept the party from the field, was deteſtable and ignominious in their eyes, and became, what things generally reputed hardſhips muſt in every ſtate of ſociety become, the lot of the loweſt rank of life. — It is therefore needleſs to dwell longer on this part of our hiſtory: — This circumſtance, however, ſhould be attended to, ſo far as it ſhows the truth of our poſition;

poſition; that, in every ſtate of ſociety and government, and in every period of the Britiſh conſtitution, no ſyſtem of equality ever can, or ever could, prevail; which kept the more diſagreeable impoſitions and duties from falling on the inferior conditions of men.

Summary of the Naval hiſtory of the Saxons.

The Saxons period of our hiſtory is more intereſting, for many reaſons, which it is here needleſs to mention. — It therefore may reaſonably be expected from us, that we ſhow that the ſpirit of their government was nowiſe contrary to the fact we are here attempting to prove. This negative argument is as much as the diſtance of time, and the advanced ſtate of our preſent ſyſtem of government requires.

Alfred, the father of our ſhipping, manned his fleet at firſt with ſeamen who had ſerved with the Friſcan Pyrates *. The arts of navigation improved conſiderably, and long voyages were attempted frequently both in his and in his ſucceſſors reigns. In the reign of King Athelſtan, a law paſſed, that every merchant, who had made three long voyages by ſea, ſhould be admitted to the

* Aſerius, p. 13.

rank

rank of a thane *. The writers of thoſe times deſcribe the magnificence of King Edgar's fleet in terms to which poſterity has refuſed belief †. King Ethelred, on a ſudden invaſion of the Danes, ordered every perſon poſſeſſed of 310 hides of land to furniſh a ſhip for the defence of the ſtate ‡. And a tax of a ſhilling was impoſed on every acre in the kingdom. This tax is known in hiſtory by the name of Danegelt ‖. The money ariſing therefrom was employed ſometimes in raiſing forces againſt, and ſometimes in purchaſing peace from, the Danes. Perhaps Mr. Selden was right in ſuppoſing, that ſome part of this tax was expended annually on a fleet purpoſely equipped to reſiſt the invaſions of that formidable enemy **. Other taxes were raiſed for the ſame purpoſe. The right of perſonal ſervice included generally perſonal attendance in all naval expeditions. The ſovereigns of the iſlands circumjacent bound themſelves, by their oath, to

* Wilkin's Leges Saxon. p. 71.

† Some accounts make the numbers of his ſhips 300, others 3000, others 3600, others 4000. See Hoved. p. 426. Flor. Wig. 607. Abbas Reival. p. 360. — See Bromp. and W. Thorn.

‡ Chronic. Sax. p. 136.

‖ Ibid.

** See Mare Clauſum. 2d Vol. tom. 2. edit. Wilkins, p. 1316, 17, 18, 19, 20, 21, 22, 23.

King

King Edgar, to do him ſervice both by ſea and land. From the accounts of thoſe times it appears, that ſome lands were particularly held by a kind of ſea-ſervice. In the book of Domeſday mention is made of places bound to find the King with ſeamen, with iron for his ſhips, with horſes to carry the armour of the ſoldiery to their ſhips, and with proviſions, money, and armour, fit for the uſe of the fleet *.

I believe this will be found an exact, though conciſe, account of naval tranſactions, in the time of the Saxons. As it is a matter of doubt whether the feudal law obtained in England in thoſe times, I ſhall poſtpone, for the preſent, making any obſervations on the general nature of feudal

* See Selden *locis ante citatis*, and the book of Domeſday. *Gloceſtrie, tempore Edwardi Regis, reddebat* 36 *dicras ferri, et centum virgas ferri, ductiles ad clavos navium regis. Lédeceſtrie reddebat ſi Rex per mare in hoſtem ibat* 4 *equos, de eodem burgo uſque ad Londoniam, ad comportanda arma, vel alia quæ opus eſſent.*

Warwick ſi Rex per mare contra hoſtes ſuos ibat, vel quatuor Batrucias, vel quatuor libras denariorum, mittebat.

Batrucius denotes ſuch Mariners as belong to boats which have no ſails. *Buſcarlus*, often mentioned in the ſame book, refer to Seamen in larger veſſels.

law. — I ſhall only obſerve that it is agreed, on all hands, that if fiefs were not at that time known in England, the great principle of the feudal law, the reciprocal obligations of protection and defence, and ſomething very like the patronage and clientage of the feudal law, did at leaſt prevail. And that this took in naval, as in all other concerns, we have Selden's expreſs teſtimony; who calls them, *Clientum fiduciariorum officia navalibus expeditionibus, et maris tutelæ illo ævo expenſæ*; — and *clientum officia ad rem nauticam, ſeu maris tutelam attinentia.* The duties of fiduciary clients, performed in thoſe ages in naval expeditions, and in the cuſtody of the ſea; — and the duties of clients belonging to naval matters, and the cuſtody of the ſea *.

The Cuſtody of the Sea.

One of the chief prerogatives of the King of England, and a prerogative mentioned in very expreſs and very pompous terms by antient writers, is "The cuſtody of "the ſea." The King is frequently ſtiled, the "Sovereign Lord and Proprietor "of the Seas;" and the cuſtody or guardianſhip of the ſea, and the havens and

* Selden opere ante citato, p. 1323.

ports

ports of this iſland, is mentioned as one of his moſt ſplendid prerogatives, and moſt important duties. For the execution of theſe offices, he was intruſted with ample powers *.

The Cinque Ports were more particularly and immediately under his care. They were governed by an officer appointed by him, called a Lord Warden, who had the juriſdiction of the admiralty in them, and was exempt from the admiralty of England. The merchants were in ſuch eſtimation, and thought of ſuch importance, that they enjoyed very great privileges, and were admitted to the higheſt honours. They had the appellation and honours of a Baron, were exempted from the feudal ſervitudes and preſtrations, and could be ſued no where but in their own Courts. In return, they were bound to find the King a certain number of ſhips, properly equipped and manned, and to keep them at their own expence for a certain time. They were alſo called upon for theſe ſervices, on particular emergencies.

* What the Cuſtody of the Sea was, is amply diſcuſſed by Mr. Selden, *Opere ante citato.*

" Their particular franchiſes were granted " them (ſays Lord Coke †), partly by an- " tient parliaments, and partly by antient " charters, and were confirmed by expreſs " name, by the Statute of *Magna Charta*."

The records of our nation, from the time of the Conqueſt, afford the moſt ſtriking proof of the truth of the aſſertion contended for in theſe ſheets. The prerogative of the Crown, of being the Lord, and having the cuſtody of the Seas, is everywhere recogniſed, and mentioned in the moſt pompous phraſes. The territories of the Crown in Normandy made it neceſſary for our kings to croſs the ſeas frequently; — and, as a royal voyage was ſeldom made without a numerous company of attendants, a large number of ſhips was always ready, or at leaſt always in a ſituation of being ready at command, to take the King and his attendants over. Our Norman territories, therefore, our wars with France, the Cruſades, and the riſing ſtate of commerce, by degrees extended our navigation, and increaſed the number and ſize of our fleets.

† 4th Inſt.

But,

But, till a very advanced period of our hiſtory, the Crown of England never poſſeſſed, properly ſpeaking, one ſhip of it's own. The ſhip called the *Great Harry*, on which King Henry VII. expended no leſs a ſum than £. 14,000, was the firſt ſhip that, with propriety, could be ſaid to belong to the Crown *. Till that time, the Crown had no other fleet but the ſhips with which they were ſupplied from different places, and particularly from ſea towns, and haven towns, in conſequence of their tenure.

The Court of Admiralty, if it did not exiſt under that name, certainly exiſted, at leaſt in a great meaſure under another, very ſoon after the Conqueſt. The powers of the admirals were very extenſive. In the reign of Edward III. perhaps much earlier, the Court of Admiralty aſſumed a regular form, and the office of Admiral became an office of more importance, and conſequently more an object of the ambition and wiſhes of the great men of the realm, than it was before. Among other powers inherent to the office,

* See Mr. Aſtle's Preface to the Will of Henry VII.

preſſing

preſſing ſhips and mariners was not the leaſt conſiderable. — Every merchant, when called upon, was bound to ſupply the ſtate with ſhips; every mariner was, in the ſame manner, bound to do perſonal ſervice. The admiral had every power neceſſary to compel both the merchants and the mariners to the performance of this obligation. He could chuſe his men, arreſt them, and detain them, for the ſervice. His orders for this purpoſe were conveyed to him by writs. Theſe, ſometimes, mentioned the particular number of ſhips and men to be arreſted, and the particular places from which they were to be taken. At other times, they ordered a general impreſs of ſhips and men to be made throughout the realm.

The writs were alſo directed to different places, and addreſſed to different perſons. The men and ſhips thus arreſted, were either ſuch as were bound by tenure, or hired. In the latter inſtance, the uſe of the ſhips were paid for, and the men received wages; but the diſtinction is not made in the writs. The writs are worded generally, and never particularly ſpecify only ſuch ſhips and men as are bound by tenure.

If

If this ſtate of facts be true, the legality of preſſing, and it's having been from time immemorial a part of the common law of this realm, is proved to the higheſt point of demonſtration that any hiſtorical point is capable of receiving.

The proofs of our aſſertions, on this head, are taken either from the mandatory writs and commiſſions from the Crown, ordering impreſs of men, or from acts of the legiſlature, in which this right of the Crown is more or leſs recogniſed.

It is to be obſerved, that there are no records in the Tower (except ſome antient charters, or exemplifications of them) more antient than the reign of King John: All of them from the reign of William I. till then (except ſome few in the Exchequer, not relating to Parliament,) being utterly loſt *.

We

* Prynne's Preface to Cotton's Abridgement of the Records in the Tower.

There are few inſtances of a book being printed with ſo falſe a title, or executed more inaccurately.

1mo.

We muſt, therefore, begin our proofs from the reign of King John *.

In

1mo. It ſhould not be intituled an "Abridgement of the Records in the Tower," but of the "Rolls of Parliament, and Summons to Parliament;" there being ſeveral records in the Tower, not only not abridged in, but in nowiſe relating to the ſubject of, that work.

2do. Mr. Tyrell aſſerts, in the Preface to the Third Volume of the Hiſtory of England, p. 9. that it was not the work of Sir Robert Cotton, but of Mr. Bowyer, keeper of the records in the Tower during the latter end of Queen Elizabeth's reign, and the beginning of James I.

An accurate Abridgement of the Rolls of Parliament, with a Summary of the Hiſtory of the Kingdom prefixed to each reign, would be a moſt invaluable work.

* Though it be not here the place to enter into a diſcuſſion of the original form and conſtitution of parliaments, is neceſſary to premiſe ſome particulars on this head.

It ſeems to be univerſally allowed, that the proceedings of the legiſlature, till the reign of Edward I. were exceedingly irregular, and greatly defective in point of form. They are ſometimes penned ſo as to appear to come from the King alone; ſometimes, as iſſued jointly by the King and Lords; ſometimes the aſſent of the Commons is, and ſometimes it is not, expreſſed. Sometimes the authority for the paſſing the acts is mentioned; and ſometimes the Acts are in the form of Charters. — I mention this, in order to anſwer any objection which may ariſe, in the Reader's mind, againſt the authorities I ſhall quote, from their ſeeming informality.

The firſt ſummons of the Knights of Shires to Parliament, extant on record, is in the 49th year of Henry III.

The

In the Reign of King JOHN,

Orders are given for arreſting all ſhips that ſhould be found on the ſea *.

Orders to forbid any ſhip or veſſel to leave the ports, without ſpecial leave from the King †.

The firſt regular ſummons directed to the ſheriff for the election of Citizens and Burgeſſes, is in the 23d of Edward I.

In this reign the proceedings of the legiſlature aſſumed a more regular form; — but far removed from that in which they appear at preſent. The conſent of the Commons to the levying of taxes for the King, gave them great weight. They took advantage of this circumſtance to obtain a remedy for the grievances they had to complain of.

In the reign of Edward III. the mode of preſenting their petitions, and of receiving their anſwers, was regularly practiſed. If the petition and the anſwer to it were of ſuch a nature as to require an expreſs and new proviſion to be made for it, the King, with the aſſiſtance of his Council and of the Judges, framed, from ſuch petition and anſwer, an act which was uſually entered on the Statute Roll. But, if an expreſs and new proviſion were not required, the Petition itſelf, and the King's Anſwer to it, were entered on the Parliament Roll, and was uſually ſtiled an Ordinance.

Alterations and improvements gradually took place. But it was not till the reign of Henry VI. that theſe petitions of the Commons were reduced, in the firſt inſtance, into the body of the bill.

* Pat. 9th John, Memb. 3. † Pat. 6th John 11.

Writs are iſſued, ordering all ſhips, that could carry ſix horſes or more, to be ſent to Portſmouth *.

Writ addreſſed to the Barons of Rye, ordering them to aſſemble *(venire faciatis)* ALL the † ſhips at the Cinque Ports ‡.

In the caſe of ſhip-money, Sir George Crooke (who argued for the illegality of the meaſure) cites 6 John, M. 1. 3 John, M. 3. 17th John, M. 7. — Three of theſe are to arreſt, and make ſtay of ſhips, that they ſhould not go out of the kingdom, but be ready for the King's ſervice; and the other was to bring ſhips of particular towns to the mouth of the Thames, for the King's ſervice §.

A commiſſion is granted to John Marſhal, to guard the ſeas; and to the ſheriff of the county of Lincoln, and to all others, to attend his commands ‖.

* Rot. Clauſ. 14 John, M. 6.

† This is remarkable, as the number of ſhips with which the Cinque Ports were to ſupply the King was limitted; an order for the ſervice of ALL the ſhips there, ſhows that they were ſometimes called upon to do duty *extra debitum*. This obſervation is made by one of the Judges in the Caſe of Ship-money.

‡ Rot. Clauſ. 7 John, M. 7.

§ 19 John, m. 4.

‖ See Molloy, Vol. I. 133.

The

The King's writ to the bailiffs of all the ports in the county of Eſſex, to aſſemble *(venire faciatis)*, at Portſmouth, all the ſhips of their bailliwick which could carry eight or more horſes, by the Feaſt of St. Hilary, or before, ready and prepared to go into his ſervice *.

Though the point immediately before our conſideration be to ſhew the right of impreſſing ſeamen, we equally notice the right of impreſſing ſhips, and ſome other of the moſt remarkable inſtances of the different powers exerciſed by government in naval affairs. — But they equally tend to ſhow it's ſupreme authority and juriſdiction, in all naval concerns, and what ample rights were inherent and annexed to the cuſtody, or guardianſhip, of the ſea.

In the Reign of HENRY III.

Orders for finding ſhips for the King's paſſage †.

The King's letters to the Viſcounts of Cornwall, Devonſhire, Dorſetſhire, Somer-

* 15 John. Rymer, vol. i. 180.— The great Charter of King John is dated the 15th of June, 1275, Anno Regni 17.

† Pat. 13 Hen. M. 1.

ſetſhire, Suſſex, Kent, Norfolk, Suffolk, Eſſex, Hertfordſhire, Lincolnſhire, and Yorkſhire, to take ſurety from the ſhips capable of carrying 16 horſes or more, to be at Portſmouth on Eaſter, and on their giving this ſurety, to permit them, in the interim, to go where they pleaſed *.

The King writes to the Viſcount of Dorſetſhire, that the two perſons therein named had come to him, at Portſmouth, with their ſhips; but not having occaſion for them, he had given them leave to return †.

The Barons of the Cinque Ports ſwore, that all ſhips which are in their ports, or coaſted there, ſhould be at Portſmouth at a certain day, ready to do ſervice to the king ‡.

Orders for arreſting all ſhips proper for the ſervice there mentioned ||.

Orders for the bailiffs of Dunwich to ſend to Dover five ſhips, well armed, with as many men as they could find, to do whatever

* Clauſ. 14 Hen. 3. dorſ. Conſimile, ibid. m. 17.
† Clauſ. 14 Hen. 3. m. 8. dorſ.
‡ Pat. 14 Hen. 3.
|| Clauſ. 17 Hen. 3. m. 7. — Clauſ. 26 Hen. 3. — Pat. 9 Hen. 3. No. 11.

the

the Conſtable of that place ſhould order them *.

The men of Yarmouth are ordered to appoint three of the beſt ſhips belonging to their town, with ſix boats and one galley, and to equip and arm them well with men and arms. William Roſs and Robert Tuckill are appointed captains. The profits of the expedition to be divided between the captains and their men, and the King, in equal portions †.

The bailiffs of Lynne are ordered to permit one of the four ſhips arreſted by the King, to be taken by his ambaſſadors to Norway ‡.

In the Reign of EDWARD I.

A writ directed to the ſheriffs of Norfolk and Suffolk, reciting that certain conſtables were appointed to aſſeſs men at arms ſufficient for the guarding of the ſea-coaſts, commanding them to diſtrain, and compel, thoſe ſo aſſeſſed to go ||.

* Clauſ. 26 Hen. 3. et ſimil. pluribus aliis.

† Clauſ. 26 Hen. 3.

‡ 18 Hen. 3. m. 4.

|| 25 Edw. m. 5. —Cited by Crooke in the Caſe of ſhip-money.

Writs

Writs to the ſheriff of Lincoln, York, and Northumberland, reciting that he had commanded perſons to collect and take 100 ſhips between Leigh and Berwick, and to man them with able men, commanding them to aſſiſt therein *.

Writs ordering different perſons to attend for the defence of the ſea-coaſt †.

A writ out of the Exchequer to the ſheriff of Berks, reciting that the King was informed that the men in the county of Berks, who were aſſigned to come to defend the ſea-coaſt, came not as they were warned; commanding to diſtrain them, and to compel them to come and do ſervice. — The like writs were then awarded to the ſheriffs of Wilts and Southton ‡.

The King taking notice of the preparations made by the King of France, commands all the ſhips and men with arms, in the kingdom, to be in readineſs ||.

* 24 Edw. 1. m. 17. Ibid.
† Ibid. M. 16. Ibid.
‡ 24 Edw. 1. Rot. 78.
|| 23 Edw. 1. m. 4. cited by Crooke.

In

In the Reign of EDWARD II.

The King having commanded all ſhips of a certain ſize to be at Portſmouth, the maſters and mariners complained that they could not ſerve without wages; — he, therefore, appointed them wages *.

Orders for appointing ſeamen †; — for arreſting and taking ſhips ‡; — for puniſhing delinquent ſeamen ‖; — for giving every ſhip of a certain weight a double equipment §; — and that all the owners of ſuch ſhips ſhould be on board thereof in their own perſons ⸸.

Writs appointing certain commiſſioners to require the communities of the towns, cities, burrows, and ports of Norfolk, to ſend in their number of ſhips armed with men **; and the ſame for the other counties.

* Clauſ. 20. Edw. 2. m. 8.

† Rot. Scot. 7 Edw. m. 8.

‡ Ibid. M. 6. M. 2.

‖ Ibid. M. 6. dorſ.

§ Clauſ. 20 Edw. 2. m. 12. dorſ.

⸸ "Equip. eſkippamentum. —De l' Allaman Schiff, qui "ſignifie un navire. Equipage, c'eſt le corps ou le troupe "des officiers, mariniers, des ſoldats, et des matelôts, "qui montent un vaiſſeau." Menage Dict. Etym. Ed. 1750, p. 543. See alſo Carpent. Supplem. Gloſs. Du Cange. ſub verb. Eſquippare.

** Rot. Scot. 11. 12 Ed. 2. m. 8. et dorſ. m. 13. et m. 8.

Orders

Orders to Alexander Clavering, the Viſcount of Norfolk and Suffolk, and Alexander Conners clerk, jointly and ſeverally, to arreſt, and take, thirty-ſix of the beſt ſhips which could be found on the coaſts of the ſaid counties, and to appoint men to ſerve in them *.

EDWARD III.

The long reign of King Edward III. contains ſufficient inſtances to ſhow, that the naval eſtabliſhment was ſuch as I have deſcribed it.

Theſe orders, and particularly thoſe for arreſting and taking men, are frequently repeated in this reign.

Orders that A. B. ſhould have power to appoint 70 able mariners for the King's barge, called the Mary †.

Orders are given to the Mayor and Bailiffs of Southton, to furniſh the owners and maſters of ſhips of a certain weight, with men

* 7 Edw. 2. Rymer, vol. 3. p. 429.
† Rot. Scot. 1 Edw. 3. M. 8.

and

and all other neceſſaries *. Orders that all men and ſhips of war be ready at Portſmouth †; — for arreſting ſhips, and appointing the men to man them ‡.

Orders are given for taking mariners for the ſhips of the King §.

For taking and arreſting ſhips.

For taking ſeamen.

For arreſting carpenters, for the works of the engineers of the King ‖.

For taking mariners for the uſe of the King ⸸.

For arreſting ſhips +-.

For arreſting ſhips and mariners **.

For appointing, taking up, and arreſting ſhips and mariners ‡‡.

For taking up mariners and bowmen, for the armament of the navy ††.

All theſe writs are very frequently repeated throughout this reign.

* Cl. 2 Edw. 3. m. 22. dorſ.
† Vaſ. 1 Edw. 3. Rot. 27.
‡ Scot. Rot. 10 Edw. 3. m. 12.
§ 29 Edw. 3. Rot. Fra. m. 13.
‖ Ibid. 12. ⸸ Ibid. 9.
+- 31 Edw. 3. ibid. m. 15, 16, 17.
** 32 Edw. 3. ibid. m. 10.
‡‡ 33 Edw. 3. ibid. Pat. per tot.
†† Ibid. P. 2. m. 18.

There are alſo frequent writs for taking the ſhips out of the arreſts.

The two admirals are impowered to make choice, as well within liberties as without, of men fit for the ſervice, and to put them on board the fleet *. The commiſſions of the admirals impower them to aſſemble all kinds of ſhips, and to chuſe and take mariners, and to put them on board †.

In the 47th of this reign, a very curious tranſaction happened.—The owners of ſhips throughout the kingdom petitioned that their ſhips were oftentimes arreſted to ſerve the King, and continued for ſome time under this arreſt before they went on their voyages, ſo that neither they nor their mariners got any wages. They begged the King and his council as a work of charity, to order that they might be paid from the time of the arreſt. The anſwer was that no arreſt of ſhips ſhould be made but when it was wanted, and payment ſhould be made as theretofore. They alſo begged to be allowed for the tackling of the ſhips. The anſwer made them

* 4 Rymer, 727, and Rymer, 3, 6. Ibid. p. 83, and 84.
† 7 Rymer, 127, and 128.

was,

was, that no ſuch allowance had been before made them *.

But not a word is ſaid, not an inſinuation conveyed, againſt the practice itſelf.

RICHARD II.

In the 2d year of Richard II. who ſucceeded Edward, the following remarkable act took place. "Whereas divers mariners, after that they be taken and retained for the "ſervice of the King upon the ſea, in de- "fence of the realm, and thereupon have "received the wages to them belonging, do "depart out of the ſaid ſervice without leave "of the admirals, or of their lieutenants, to "the great damage of the King our Lord, "and of the realm, and delay of his ſaid "voyages: It is ordained and eſtabliſhed, "That all ſuch mariners, who ſhall here- "after ſo do, and that are found and true- "ly proved before the admiral, or his "lieutenant, be obliged to reſtore to our "Lord the King the double of what "they ſhall have taken for their wages, "and, nevertheleſs, be impriſoned for a

* Printed Rolls of Par. vol. ii. p. 319, 320.

" year, without being delivered from thence
" by any mainprize, bail, or by any other
" way. And the King wills and commands
" all ſheriffs, mayors, and bailiffs, within
" franchiſes and without, that, upon the
" certificate of the ſaid admirals, or their
" lieutenants, by their letters thereupon to
" be made, teſtifying the ſaid proof, they
" forthwith, without expecting any other
" command of the King our Lord, cauſe to
" be taken and attached all ſuch fugitive
" mariners, by their bodies, within their
" bailliwicks within franchiſes and with-
" out, and put them in priſon, there to re-
" main in good and ſafe cuſtody, until they
" ſhall have made ſatisfaction to the King as
" afore is ſaid, and thereupon have ſpecial
" command of the King our Lord for their
" deliverance. And that the ſame puniſh-
" ment be inflicted on ſerjeants of arms,
" maſters of ſhips, and all others who ſhall
" be attainted by enquiry before the admi-
" ral, or his lieutenant aforeſaid, of having
" taken any thing of the ſaid mariners for
" ſuffering them to go at large out of the
" ſervice aforeſaid, after they have been ta-
" ken for the ſaid ſervice."

In

In the ſame year, the commons petitioned the King in reſpect of the bad ſtate of the navy. Their petition ſets forth, That ſhips were too often arreſted for the ſervice of the King, and that the wages of mariners were too ſmall, and prayed for redreſs. The anſwer was, that it ſhould be as had been uſed *.

In the enſuing year, they preſented another petition on the ſame ground, complaining of the long and many arreſts of the ſhips without wages from the King.—The king, in his anſwers, declares what wages he wills them to have.—The regulation on this head to be in force till the meeting of the next parliament †.

In the tenth year of the ſame reign, the Commons prayed that, for the increaſe and maintenance of the navy of the kingdom, his Majeſty would pleaſe to grant to the proprietors of the ſame ſhips the wages thereby ſpecified. — The King anſwered, that he had laid this matter before his council ‡.

* Printed Rolls of Parliament, vol. iii. page 66.
† Ibidem, page 86. ‡ Ibidem, p. 233.

This

This deſerves particular attention, as it ſhows, that the navy of England was, at leaſt partially, compoſed of ſhips, the poſſeſſion and ownerſhip of which belonged to individuals.

Four years after the commons ſet forth, in petition, that the poſſeſſors of ſhips and mariners demanded exorbitant wages for public ſervice, and much higher than they demanded in the preceding reign, and confederated with one another for this purpoſe. They therefore begged that it might be lawful for the bailiffs and mayors of the towns where theſe delinquent mariners ſhould be found, to puniſh them at the ſuit of every perſon aggrieved by their behaviour. The King tells them he would charge his admirals that the mariners ſhould have reaſonable wages for their ſervice and labour, and to puniſh them if they took otherwiſe *.

From this act we may fairly argue, that the ſtate had, by common law, a right to the ſervice of merchant-men and mariners; otherwiſe they certainly might demand what wages, or, in other words, offer what terms

* Printed Rolls of Parliament, Vol. iii. p. 283.

they

they pleaſed, for their labour. Beſides, by the wording of the petition, and of his Majeſty's anſwer, it ſeems that the remedy prayed for was, that the bailiffs and mayors of towns might be impowered to puniſh the mariners hereby complained of; and that this power was already in the admirals.

Orders are given for arreſting both ſhips and mariners *; for aſſembling (*venire faciatis*) all the mariners †; for arreſting ſhips ‡; for arreſting ſhips for the paſſage of the Duke of Brittany ||; for arreſting both ſhips and mariners through the kingdom §. A writ to ſerjeants at arms, to arreſt all the ſhips of war in the ports of Plymouth or Dartmouth, and of other ports in the county of Cornwall; and to bring them to Hunſhooke, to go with the King's Majeſty's ſhips **; for arreſting all ſhips and mariners of the admiralty of the weſt ††. The King appoints Robert Hales, &c. admiral; and impowers and impowers him to collect together, as often as there might be occaſion, ſhips and veſſels of war, and to appoint, take, and

* 1 R. 2. parte 2da.
† 1 R. 2. m. 4.
‡ 3 R. 2. m. 26.
|| 3 R. 2. m. 30.
§ 7 R. 2. m. 37.
** 11 R. 2. m. 13
†† Rot. Franc. 9 R. 2. m. 18.

him

put on board of ſuch ſhips, all mariners and others fit for ſuch ſhips, and to chaſtiſe all mariners that ſhould rebel againſt, or be diſobedient to theſe orders *.

HENRY IV.

In the 6th year of the ſubſequent reign, the lords and poſſeſſors of the veſſels of the kingdom of England prayed for certain wages to be paid to them, from the firſt day of their veſſels being arreſted for the ſervice of the King, and that the ſaid veſſels might, when on their return, be brought, at the expence of the King, into their reſpective ports. The anſwer of the King was, "That the antient ordinances ſhould "be adhered to."

Though the attention of the monarch we are now ſpeaking of was almoſt entirely engroſſed by civil commotions, and by the care of ſecuring his poſſeſſion of the throne againſt the houſe of the preceding king, the jealouſy between France and England, at different times, made it neceſſary for him to

* 1 R. 2. Rymer, Vol. vii. 171.

prepare

prepare for defence, in caſe he ſhould be attacked.

As the ſafeguard of the ſeas was an object of the higheſt conſequence, it was neceſſary to provide for it in a proper manner. And as the merchants had been very loud in their complaints in the preceding reign, it was neceſſary, and, at the ſame time, very politic, for the monarch to provide for it in a manner agreeable to the ſubjects in general, and to the merchants in particular. This produced a ſingular tranſaction, which we ſhall relate very particularly, as we think it deſerves the Reader's moſt ſerious attention.

In the 7th and 8th year of the reign of Henry IV. at a parliament held at Weſtminſter, on the 5th of April, Mr. John Typetot, ſpeaker of the Houſe of Commons, repreſented, that a treaty was then in agitation between the King and his counſel of the one part, and the merchants of England of the other part, reſpecting the ſafeguard of the ſea; that it could not be at preſent concluded, on account of many difficulties which had ariſen in the courſe of the treaty, and as the feſtival of Eaſter (when the Houſe could not ſit) was ſo near that it would be impoſ-

ſible for Parliament to ſee the end of the affair; he therefore petitioned that certain members of the Houſe might be choſen, and that it might be given in charge to them to treat upon theſe matters with the King and Council, and to finiſh them to the beſt of their power. In conſequence of this petition, ſix commiſſioners were choſen for theſe purpoſes: And the treaty between them was as follows.

It begins, "This is the ordinance made in "parliament, by advice of the Lords Spi-"ritual and temporal, and Commons, in "parliament aſſembled:

"That the merchants, mariners, and "poſſeſſors of the ſhips of England ſhould "exert their power for the ſafeguard of the "ſea, with ſhips and other veſſels, together "with 2000 fighting men, ſometimes more "and ſometimes leſs, for the defence of "the ſea." This was to hold to Michaelmas twelvemonth; — and for this certain tonnage and poundage was allowed them.

The merchants then aſked to have privy-ſeals and warrants, as often as there ſhould be occaſion

occaſion for them, and powers to appoint officers and controlers: *And that the ſaid merchants, mariners, and poſſeſſors of ſhips, ſhould have commiſſions, letters, and writs under the great ſeal and privy ſeal, as often as they ſhould find occaſion, as well to arreſt ſhips and mariners, as for other things proper to be done for the cuſtody of the ſea.*

It was anſwered, That, for levying the aforeſaid tonage and poundage, they ſhould have every neceſſary order under the great and privy ſeal.

It was granted, that they ſhould enjoy all prizes taken by them. — They alſo petitioned for £. 4000, to be advanced them, but the King tells them, he has it not to give them.

It was declared, that they ſhould always have notice of the royal navy, of the enemy being out at ſea, of the King's going againſt them, in caſe this ſhould happen, and of any peace or truce that ſhould be made.

It was alſo granted to them that they ſhould name two perſons to be admirals, the one for the ſouth and the other for the north, with the uſual powers of admirals.

It is, I believe, impoſſible to produce ſtronger proof of the aſſertion I am now attempting to prove, (that the Crown always had power to impreſs ſeamen by the common law) than this record. We ſee every rank of the ſtate, the Crown, the Lords, the Houſe of Commons, and the commercial body of the people, to agree in deſcribing the arreſt of men as things very well known, and as inherent to the power of Admiral. In the many complaints of the decreaſe of the navy, with which the rolls of parliament abound, there is not one againſt the impreſs of ſeamen. — There are many petitions for the increaſe of wages; that the ſhips were kept longer in arreſt than neceſſary; but not a word, or even an inſinuation, againſt the legality of arreſts of ſhips or of men, either by the commons, who, during the laſt reign, indulged themſelves in unwarrantable jealouſies, in the preſent, in at leaſt decent apprehenſions of the King's prerogative; or by the

the merchants, the perſons immediately affected by it.

In conſequence of the above tranſaction, Richard Clidero was appointed admiral for the ſouth, and Nicholas Blackbourn for the north, and with the aſſent of the Crown aſſumed their offices.

Thereupon, by a writ * addreſſed to the ſheriffs, mayors, bailiffs, miniſters, lords, maſters, and mariners of ſhips, and to all his ſubjects, as well without as within liberties; and reciting, in ſhort, the above tranſaction; the King appoints Nicholas Blackbourn, the perſon named, by the merchants, admiral of the northern parts, with the full powers belonging to the office of admiral; — and particularly of collecting ſhips and veſſels of war, whenever neceſſary, and of appointing, taking, and putting on board of them, all mariners and other perſons neceſſary for ſuch ſhips, and of puniſhing theſe who ſhould rebel, or oppoſe them in ſo doing. And of doing all other things which of right, and according to law, belong to the office of admiral †.

* 7 Hen. 4. Rymer, vol. viii. p. 439.

† De Navigiis et Marinariis, pro ambaſſadoribus Franciæ arreſtandis. Rot. Fra. 13, 14. H. 4. M. 12.

Afterwards

Afterwards the merchants, who had been thus appointed to keep the ſeas, repreſented the expences they incurred for the wages of many *gens d'arms*, armed men, archers, and mariners, and other neceſſary charges; they therefore prayed allowance for the ſame, and that they might be diſcharged from keeping the ſeas. — The King willed, that they ſhould be diſcharged from keeping the ſeas; and the reſt of their petitions he referred to his counſel to examine, with power to make any allowance they ſhould think proper.

In the Reign of HENRY V.

The King appoints Lord Huntingdon his lieutenant, and orders all ſheriffs, &c. and the lords, maſters, and mariners of ſhips, to obey him; — but not to arreſt any ſoldiers or ſeamen retained by John of Clifford, or Edward Courtenay *.

HENRY VI.

A writ directed to ſeveral perſons, ordering them to arreſt and take for the King's ſervice, all ſhips, barges, and other veſſels,

* 4 Hen. 5. Rymer, vol. ix. p. 344.

and

and alſo all maſters and mariners that could be found in the ports therein mentioned, any royal letters of licenſe theretofore granted to any perſon or perſons notwithſtanding *. Like writs are ſent to the officers of all the port towns in the kingdom.

EDWARD IV.

Orders from the King to William Philpotte maſter of a ſhip called Petyr of London, to arreſt, take, and ſhip all mariners neceſſary for that ſhip, as well without as within liberties. The ſame orders are ſent to five other maſters of veſſels †. The ſame orders are ſent to eleven other maſters of veſſels ‡.

The King appoints Robert Radcliffe captain of his fleet, and orders him to arreſt, take, and provide the ſame with ſhips and other veſſels, and with mariners, maſters of ſhips, ſoldiers, carpenters, &c. wherever found, except within the liberties of the church, and to ſhip them on board ||.

* 11 Rymer, 21, 22.
† 15 Edw. 4. 12 Rymer, p. 5.
‡ 20 Edw. 4. 12 Rymer, 139.
|| 22 Edw. 4. 12 Rymer, p. 166.

HENRY

HENRY VII.

Lord Willoughby de Broke being made commander of the fleet and navy, then going out on an expedition to France, he * and, in his lordſhip's abſence, Sir Robert Poyntz †, has the ſame powers as we have before noticed to have been given to others, of arreſting and taking up men, and puniſhing the refractory.

HENRY VIII.

The Duke of Richmond's commiſſion contains ſimilar powers of taking up mariners ‡.

PHILIP and MARY.

In the 2d and 3d year of this reign, an act paſſed, regulating the watermen and bargemen upon the river Thames ‖. It is thereby

* 5 Hen. 7. 12 Rymer, 455.
† 8 Hen. 7. Ibid. 484.
‡ 17 Hen. 8. 14 Rymer, 42.
‖ 2d, 3d, Phil. Mary, c. 16, 58.

enacted,

enacted, that all perſons exerciſing the occupation of rowing between Graveſend and Windſor, who ſhould ſecrete themſelves, while the preſs warrants were out, and as ſoon as the preſs was over, return to their employments, ſhould be impriſoned for two weeks, and be baniſhed from rowing on the Thames for a year and day then next following.

We may properly infer from this act, that preſs warrants were in uſe at the time it paſſed. The offence hereby intended to be remedied, is the ſlighteſt of it's kind that can be committed; not a reſiſtance to preſs-warrants, but merely a withdrawing to avoid becoming the object of their execution. We may alſo reaſonably infer, that the practice in queſtion had the countenance of the legiſlature in general. And that this ſtatute, to uſe the expreſſion of Lord Coke, was only in affirmation of the common law.

There alſo is a proclamation of the fourth of this reign, which recites, that diverſe mariners and ſea-faring men, lately preſſed and retained to ſerve her Majeſty, had withdrawn themſelves from the ſaid ſervice, and inflicts on ſuch offenders the penalty of death *.

* Coll. Proclam. vol. ii. p. 144. Penes Soc. Ant.

QUEEN ELIZABETH.

The ſtatute of the 18th of Henry VI. c. 19. againſt ſoldiers leaving the ſervice, by the 5th Eliz. c. 5. § 27. is made to extend againſt all mariners who take preſt or wages. And § 41, it was enacted in favour of fiſhermen and mariners haunting the ſea as fiſhermen and mariners, that none of them ſhould be compelled to ſerve upon land, or upon the ſea, otherwiſe than as a mariner, with the exceptions therein mentioned. — And, by § 43, that no fiſherman ſhould be taken by the Queen's Majeſty's commiſſion, unleſs the ſaid commiſſion ſhould be firſt brought by her Highneſs's taker or takers, to two juſtices of peace next adjoining and inhabiting to the place where ſuch mariner is taken, to the intent the ſaid juſtices may chuſe out, and cauſe to be returned, ſuch ſufficient number of able men, as in the ſaid commiſſion ſhould be contained, to ſerve her Majeſty.

I have heard it objected, that the firſt part of this ſtatute makes againſt the legality of preſſing, as the only mariners deſcribed to be within the ſtatute of Henry VI. are ſuch as have taken preſt-money: Which

Which expreſſion, it is ſaid, ſuppoſes that thoſe only are engaged to ſerve who have taken preſt-money, which they ſay is ſynonymous to wages. Mr. Barrington, in his Obſervations on the Antient Statutes, ſeems to countenance this opinion. He derives the word *preſſing* *, antiently ſpelt *impreſſing*, from the word *empreſtre*, which ſeems to imply a contract on the part of the ſeaman, rather than his being compelled to ſerve. With deference to the abilities, penetration, and extenſive erudition of this valuable writer, I ſubmit my humble opinion, that there is nothing in the meaning of the word *empreſter*, which warrants the concluſion he has been pleaſed to draw from it. It has been before obſerved, that thoſe who were not bound by their tenure to do ſea-ſervice, received wages for it. The mode of retaining them probably was by tendering them an advance of ſome part of their wages. It is not neceſſary to ſuppoſe, that when this advance was offered to them, their not receiving it kept them free from compulſion to the ſervice. This tender they were at liberty to reject; but the moment it was made to them, whe-

* Page 334.

ther they received it or not, they were equally marked out, and legally retained in the ſervice. This ſeems to be very clearly ſignified in the other parts of the act.

In this reign preſſing was very much in uſe. In the commiſſion given to Sir Martin Frobiſher, the Queen gives him power to preſs, and to take up, for her ſervice, any mariners, ſoldiers, or other needful artificers; and requires all juſtices and other officers to be aſſiſting to him therein *.

CHARLES I.

There is a temporary act of this reign, which authoriſes an impreſs by admiralty warrants. I refer the reader to what Mr.

* 31 Eliz. 16. Rymer, 22.

It muſt be admitted, that the parliament ſeems to recognize the Queen's power of preſſing, by the 5th Eliz. 41. — Sir John Falſtaff, in the Firſt Part of Henry the Fourth, ſays, "I have miſuſed the King's Preſs damnably;" ſpeaking of it as a known practice. See Act iv. Scene 2. In the Second Part of this play, when Falſtaff brings his recruits before Juſtice Shallow, it ſhould ſeem that there were ſome temporary laws for raiſing men, as hath not been uſual of late years. Barrington on the Antient Statutes, 338.

A Ferryman (if it be on ſalt-water) ought to be privileged from being preſſed as a ſoldier or otherwiſe. See Rep. 11. Cit. ibid.

Juſtice

Juſtice Foſter has ſaid on this head; to the propriety of which nothing can be added. To give his ſentiments in other language than his own, would be to do him and the reader equal injuſtice. To copy it word for word ſeems to me, at leaſt, improper.—Indeed, if this Eſſay ſhould have no other effect than cauſing *that* excellent treatiſe to be more univerſally read, it would anſwer the moſt ſanguine of the Author's wiſhes.

In the year 1626, the Commons impeached the Duke of Buckingham. Among other charges brought by them againſt his Grace, he was accuſed of ſeveral malpractices in his office of high admiral. They accuſed him of neglecting to guard the ſeas. Mr. Selden managed this part of the charge. I beg to refer the reader to it, and that he ſhould compare it with what the ſame learned gentleman writ a few years after on the guardſhip of the ſeas, in his work intituled *Mare Clauſum*. Mr. Selden's ſpeech is printed in his works, and is to be found very fully taken down in Ruſhworth. In the 6th article of the impeachment, the Commons ſet forth, that the Duke, on a certain occaſion, moved the Lords aſſembled in parliament,

liament, whether he ſhould make ſtay of any ſhips which were then in the ports, (as *being high admiral he might)* and namely the ſhips prepared for the Eaſt-India voyage; which motion was generally approved by the whole Houſe. — And, further on, they accuſe him of having procured a ſhip of the royal navy to be appointed for the ſervice of the King, and that ſeven other merchant ſhips were alſo impreſſed.

They proceed to complain of the uſe to which the ſhips ſo impreſſed were put; and that, being apparently preſſed for the ſervice of the nation, they were afterwards, by management of the Duke, delivered to the King of France, or otherwiſe miſapplied; but there is not one ſingle reflection on the article of preſſing itſelf. They never once object to it as arbitrary, or an illegal practice.

In another work, written profeſſedly on that ſide which is commonly ſuppoſed to be moſt jealous of the liberty of the ſubject, and ſaid to be collected from the manuſcript notes of the gentleman I have juſt mentioned, after a very learned and very accurate, though conciſe account of the juriſdiction of the court

court of admiralty, it is ſaid, "That the "Lord Admiral hath power not only over the "ſeamen ſerving in the ſhips of ſtate, but o-"ver all other ſeamen, to arreſt them for the "ſervice of the ſtate; and if any of them "run away without leave from the admiral, "or power deputed from him, he hath "power, by enquiry, to make a record there-"of, and certify the ſame to the ſheriffs, "mayors, bailliffs, &c. who ſhall cauſe them "to be apprehended and impriſoned *."

The ſame doctrine is expreſſedly laid down in the Caſe of Ship-money. The Reader who deſires to underſtand perfectly the nature of the naval eſtabliſhment of this country, in the more antient times, will have his curioſity amply ſatisfied, by peruſing that valuable report. What was ſaid by counſel, in arguing the caſe, and what was ſaid by the judges who gave their opinion for the court, I ſhall here paſs over: But as the part which was taken by Sir George Crooke in this affair renders his teſtimony moſt unexceptionable, I ſhall here preſent the Reader with *his* ſentiments on the ſubject before us.

* Bacon's Hiſtorical and Political Diſcourſe of the Laws and Government of England, Part ii. p. 26.

Throughout

Throughout the whole of his argument Sir George, while he poſitively denies the Crown a right to charge perſons for the building of ſhips, or to compel them to build ſhips at their own expence, allows, in the moſt expreſs terms, it's right to employ the ſhips and the ſeamen of the nation in the public ſervice, and to compel them into it. I ſhall cite the following as one of the many paſſages which might be ſelected for this purpoſe from his learned argument.

"There can be no ſuch neceſſity, or danger conceived, that may cauſe theſe writs "to be awarded to all counties of England, "to prepare ſhips at ſuch a charge, and "with ſuch men and ammunition, without "conſent in parliament; for the laws have "provided means for defence in times of "danger, without taking this courſe: for "that the King hath power to command all, "or any perſons of this kingdom, to attend "with arms at the ſea-coaſts, to defend the "coaſts, or any other parts of the kingdom; "and alſo by his officers, to make ſtay or "arreſt, all or any the ſhips of merchants, "and others having ſhips; or as many as he "pleaſeth to go with his navy, to any parts "of

"of his kingdom, for defence thereof; and "to attend thoſe to whom he appointed the "guard of the ſeas, or the ſea-coaſts, at ſuch "times and places as they ſhould appoint. "And this has been always taken and con- "ceived to be ſufficient for defence, againſt "any prince whatſoever; and yet the ſame "was in times, when the navy of England "was not ſo ſtrong, as now by the bleſſing "of God, and the good providence of his "Majeſty, it is."

In Scobell's Collection there is an ordinance of the 28th June 1659, intituled *An Ordinance to encourage Mariners, and to impreſs Seamen:* By this different encouragements are held out to mariners, to induce them to enter into the ſervice, of their *free accord:* — And, by the laſt clauſe, it is ordained that all mariners, ſeamen, and watermen, who have ſerved an apprenticeſhip of ſeven years, ſhould be exempted from being preſſed to ſerve as ſoldiers in any land ſervice. This ordinance proceeds therefore on the principles, and with the meaſures, adopted in all naval well-regulated governments. It holds out to the ſeaman, the ampleſt bounty

which the public purſe can afford; and it leaves the tardy to the coercion of the preſs.

It is needleſs to require a ſtronger proof of the legality of the impreſs. If it can be proved that this meaſure has been, from immemorial time, in conſtant uſe, and never declared illegal, either by the legiſlature or by the judicial power, there certainly is the ſtrongeſt preſumption of it's legality: It ceaſes to be preſumption, if it appear to be expreſſly recogniſed by the legiſlature; it becomes demonſtration.

WILLIAM III.

By the 7th and 8th of this reign, it is enacted that licences ſhould at any time be given, by order of his Majeſty or the lord high admiral, or commiſſioners of the admiralty for the time being, to any landmen deſirous to apply themſelves to the ſea-ſervice, to ſerve on board merchant-ſhips or other trading veſſels, which ſhould be to them a protection againſt being impreſſed for the ſpace of two years following, provided they could bring two perſons to aſſert, upon oath, their being landmen,

landmen, with a penalty, in caſe they afterwards proved to be ſeamen.

We do not meddle with any right which the Crown may claim to impreſs landmen. The impreſs of men in general is here taken notice of, and is not cenſured. But the impreſs of ſeamen is alſo taken notice of, and tacitly allowed. For their being exempted for two years from the preſs, manifeſts that, without that exemption, they would be liable to it. This ſtatute, therefore, by exempting a particular ſet of men, complying with ſome particular requiſites, from the preſs, for a particular time, ſhows that there are other perſons who are liable to the impreſs, and that the very perſons included in the exemption are alſo liable to it, at the expiration of the time for which the exemption is granted, or on not complying with the requiſites thereby ſpecified. The ſame obſervation holds as to the remaining ſtatutes which I ſhall have occaſion to cite. I beg the Reader to obſerve, that this and the next ſtatute were paſſed at a time when the prerogatives of the Crown were moſt ably and moſt minutely ſcrutinized.

In this reign the expedient of a voluntary regiſter was attempted. The advocates for it employed one Hodges, to ſet forth it's utility in a pamphlet. But the expedient was found to be inſufficient; and open, with reſpect to it's conſtitutional merit, to more objections than the impreſs itſelf.

QUEEN ANNE.

By the 1ſt Anne, ſeſſion 1, c. 16, § 2. no harpooner or other foreigner is to be impreſſed. — 2d and 3d An. c. 6. Boys put out apprentices are not to be impreſſed till they arrive at the age of 18. Perſons voluntarily binding themſelves are not to be impreſſed for three years. — If, after that time, they ſhould be impreſſed, their maſters are to have able ſeamen's wages for them: And for encouraging the coal-trade, every veſſel in the trade is thereby allowed to have one able ſeaman, beſides the perſons there ſpecified for every 100 ton of the veſſel, not exceeding 300 tons, free from *impreſſing*.

4 Ann. c. 19. On notice given by the admiral to the watermens' company, ſuch watermen as do not obey the ſummons given them,

them, are to be impriſoned for one month, and be diſabled for two years.

6 Ann. c. 31. § 2. Watermen belonging to the Inſurance-offices are declared to be free from impreſſing.

In the ſucceeding reign, there are to be found ſeveral ſtatutes, in which the impreſs of ſeamen is, more or leſs, mentioned as an uſage of the kingdom, and recognized to be legal.

On the inſtances we have adduced we ſhall make no further comment *; unleſs we very much miſapprehend their nature, we think they

* The Author of theſe ſheets is ſenſible, that the inſtances and citations which he has, in this ſection, brought before the Reader, might have been much more numerous, and much more judiciouſly ſelected. To many ſources of uſeful information he had not acceſs. Some he had not leiſure to inſpect. To thoſe which he has conſulted, he had not in his power to beſtow neceſſary attention. As this apology, however it may excuſe the defects of the performance, expoſes him to the cenſure of obtruding, knowingly and willingly, a haſty work on the Public; he begs leave to mention, That, when he firſt engaged in it, he was informed that the part of this diſquiſition which makes the ſubject of this ſection, was to have been executed by a perſon every way qualified to do it juſtice. With this perſuaſion he writ the firſt five ſections. He was then informed, that he was not to receive the aſſiſtance, with the hopes of which he had flattered

they fully prove the point undertaken to be proved in this ſection, "That the impreſs of "ſeamen is a part of the common law, and "has

flattered himſelf on ſetting out. In the mean time, his manuſcript had been ſhown, and a perſon whoſe approbation would give celebrity to any work, and whoſe rank gives his ſlighteſt deſires the force of commands, was repeatedly pleaſed to commend the performance, and to expreſs a wiſh of ſeeing it in print. Little ſenſible of what he was about to undertake, he promiſed to publiſh it. Nothing now remained for him, but to perform his promiſe; and, however faulty the execution of it may be, he would rather truſt to the mildneſs of the Public cenſure, by producing an unfiniſhed work for their peruſal, than incur the animadverſion of the individuals privy to this tranſaction, by retracting his promiſe.

To treat the ſubject as it deſerves, a much larger field of inquiry ſhould be opened, than the author of theſe ſheets could venture upon. — It requires a mind already treaſured with various literature, and every aſſiſtant help of books and retirement. If any perſon, thus circumſtanced, ſhould undertake to write on the ſubject, he would find it worthy his utmoſt abilities. — A plan of this nature was formerly ſketched out by Mr. Anſtis. I believe it will not be unacceptable to the Reader to ſee it in his own words.

"The collector of theſe notes, deſigning an account of "the antiquity, juriſdiction, and proceedings of divers "courts of this kingdom, and, among others of that of "the Admiralty, and having an intention of inquiring into "the nature, quality, and ſucceſſive encreaſes of the ſub-"ject matters properly cognizable in each court; as an "appendix to that of the Admiralty, among ſundry other "diſſertations thought that an Abridgement of all Records "relating to Shipping, might not be an unacceptable at-"tempt, therefore took references from time to time, that

"when

" has been often recognized by the ſtatute " law of the realm."

In

" when he met with ſufficient leizure, he might eaſily turn " to ſuch places as ſhould be ſubſervient to ſuch a work, " and is concerned that he took them ſo ſlightly; however, " by this ſlender Eſſay, ſome few matters of curioſity will " appear. He thought that an account of the ſhipping of " the Antients, of their navigations and method of fighting, " &c. was wholly foreign to the hiſtory of the Court of " Admiralty of England, but thoſe perſons who deſire ſa- " tisfaction therein, may find ſomething wherewith to ſatiſ- " fy their curioſity in the Authors following.

Bayſius de Re Navali.
Salmas Exer. Plin. p. 264, 570, 1110.
Brodeus, lib. iii. miſc. l. 4. c. 13. l. 1. c. 35. l. 5. c. 36.
Pithoeus, lib. 3. miſc.
Petrus Nonnus de Arte Navigandi.
Snellius.
Opelius de Fahnia Frirem.
Meibomius.
Thomas Rivii Hiſtoria Navales, in 2 vols.
Varenius Geograph. c. 35.
Ricciolus Geographia Reformata, l. x. c. 11, &c.
Petrus Peckius.
Libinius de Navigiis.
Barthol. Moriſot Orbis Maritimus.

This manuſcript was lent to the Author by Mr. Aſtle of the Paper Office, and keeper of the Records in the Tower, to whom the literary part of this nation, and particularly thoſe who apply to the ſtudy of it's conſtitution and antiquities, have the greateſt obligations. His valuable library, and perhaps unequalled collection of manuſcripts, were, upon this occaſion, ever open to the Author's acceſs. Of his counſel and aſſiſtance he may alſo boaſt. Whatever be the merit of this little work, juſtice requires it ſhould be aſcribed

includes, beſides the power of chuſing, the power of *compelling* the perſons choſen to obey. On the authority of a manuſcript of Judge Yelverton, I have tranſlated it by the word *appoint*.

Arreſtare.

Arreſtare naturally implies *compulſion*. In it's legal import it often implies detaining perſons, or things, for the King's ſervice. In the antient records of this kingdom, and in the civil law, from which many of our records are borrowed, it ſignifies detaining perſons or goods in the hands of the King, or in his courts, till ſomething that regards them, and then in diſpute, be decided *.

Objection, That none were obliged to ſerve, but ſuch as were bound by tenure, covenant, or contract, or were in priſon for the King's debts.

Another objection, and the laſt that occurs to me, againſt the doctrine contended for in theſe ſheets, is from the doctrine laid down by Lord Coke †, "That the King cannot "preſs to ſerve in his wars: For that, of "old, he was to be ſerved either by thoſe "that held by their tenure, thoſe that cove-"nanted by indenture to provide men, thoſe "who contracted with the King's officers "for wages, and entered into pay, or thoſe "that were in priſon for the King's debts.

* C. 2. de Crim. ſal. et relegatorum, ff. de interdict. et rele.

† 1 Inſt. 71.

In

In anſwer to this objection, I preſume, with the utmoſt reſpect for Sir Edward Coke's name, it may be aſſerted with confidence that, without detracting from his character as the firſt common lawyer that ever appeared, his merit as a parliamentary, or conſtitutional author, or as a perſon verſed in records, tho' very conſiderable, carries with it a far inferior degree of weight. Upon an attentive examination of the conſtitutional records of this kingdom, the above account of the King's right to impreſs will be found very inaccurate. But as to the right of the King to impreſs landmen, we have before declared that we do not, in theſe ſheets, pretend to examine it. Should we admit it to be as it is here repreſented, yet, after the continued chain of inſtances we have ſhewn of the right of the Crown to impreſs ſeamen, it rather becomes matter of curioſity how the Crown ſhould exerciſe a right of impreſſing ſeamen, when the right of impreſſing landmen was denied it. Anſwer.

Whoever conſiders attentively the nature of the feudal polity, will find a ſtriking difference in the ſituation of landmen and ſeamen. The chain of ſubordination, which Difference between landmen and ſeamen.

The commercial part of the nation was not within the chain of feudal ſubordination.

cemented together the different ranks of the former, is well known, and not more accurately deſcribed at preſent than it, formerly, was ſenſibly felt. The commercial part of the nation was not, properly ſpeaking, among the links of this regular ſyſtem of ſubordination. That branch of Naval Men, who were immediately employed in the ſervice, and in the occupation, of Commerce, looked up *immediately*, generally ſpeaking, to the King, as to their ſole and immediate ſovereign, expecting protection *immediately* from him, and doing ſervice *immediately* to him; and not mediately, as the reſt of the nation did, through the long line of the feudatory connections. The inattention of all feudal nations to commerce, left this ſet of men immediately to the Crown. This, therefore, would naturally give him more abſolute power over them, than he could exerciſe over any other particular ſet of men in the nation *.

The commercial intereſts of the nation more attended to by our ſovereigns than by the barons.

It has been frequently ſaid, that commerce was more attended to by the ſovereign than by any other of the ruling powers of this nation. It certainly was more encouraged by him than by his barons. Finance was, in thoſe days,

* See Bacon's Diſcourſes, 2d Part, page 24, 25.

but

but little underſtood.—It was not, perhaps, till very late, that it was generally conceived, how much the wealth and ſtrength of a nation is aſſiſted by the commercial acquiſition of individuals.

Military glory being, in thoſe days, the ſole object of ambition, military employment was of courſe the ſole purſuit. Nor could the baron, who met his ſovereign in arms, conceive much eſtimation for thoſe who cultivated the peaceable employments of commerce. To him *their* occupation appeared the extreme of indolence and cowardice; the greateſt, if not the only vices in his eyes;—and the moſt oppoſed of all to thoſe qualities which give him importance.

The barons h commerce an it's followers i contempt a

Meanwhile the commercial people grew up in ſilence and obſcurity, acquired ſtrength, by degrees, and inſenſibly obtained a regular and durable eſtabliſhment. Acting, at firſt, by the mere virtue of their own natural powers, they derived force from the inattention which was at firſt ſhewed to them: They extended and improved to an amazing degree, the advantages which they received; and finally raiſed on the ruins of ſome of the moſt

Meanwhile co merce ſpread a improved.

moſt ſplendid prerogatives of the crown, and the ariſtocratical combinations of the nobility, a new power in the conſtitution, and formed a new object of national intereſt.

The Kings uſed the help this body of men naturally preſented them, and connected themſelves with them againſt the barons.

The ſovereigns of all nations obſerved, and uſed, the aſſiſtance they naturally preſented them, in humbling their nobles. In Italy, where the power of the ſovereign was ſmall, many of the cities and communities, in which commerce prevailed, acquired independance. In France and in England, they joined the Crown, againſt their common enemy, the imperious barons. As the Crown was the firſt that protected them, for a long time after, they looked up to it as to their immediate ſupport. — The ſovereign, in return for the protection he gave them, claimed their aſſiſtance. This union was ſtill more cemented by the antient prerogative of the Crown, ſo immediately favouring, and ſo intimately blended with navigation and commerce, of having the cuſtody of the ſea. We have before obſerved, that the Crown had not any ſhip of it's own till a very late period. Thoſe who were bound to ſerve by tenure, were not adequate, either in number or by their complement of men, to the views of the nation.

The Crown's prerogative of having the cuſtody of the ſea, cemented ſtrongly this connection.

tion. The only reſource, therefore, was by uſing the ſhips of the merchants. — Theſe circumſtances conſpiring together, makes it very eaſy to account for any right which the Crown uninterruptedly exerciſed over ſeamen, though no inſtance could be adduced of it's exerciſing a ſimilar right over the landmen. — But, whatſoever cauſe we may aſſign for the rights of the Crown in this particular, it certainly was ſuch as we have repreſented it to be.

I ſhall conclude this Eſſay with a quotation on this ſubject from Mr. Hume, which bears the ſtrongeſt marks of that penetration and depth of thought for which he has been ſo highly celebrated. Mr. Hume cite

"The *third* cuſtom, which we propoſe to "remark, regards ENGLAND; and though "it be not ſo important as thoſe which we "have pointed out in ATHENS and ROME, "is no leſs ſingular and unexpected. It is "a maxim in politics, which we readily "admit as undiſputed and univerſal, that a "power, however great, when granted by "law to an eminent magiſtrate, is not ſo "dangerous to liberty, as an authority, how-"ever inconſiderable, which he acquires from "violence

" violence and uſurpation. For, beſides that " the law always limits every power which " it beſtows, the very receiving it as a con- " ceſſion eſtabliſhes the authority whence it " is derived, and preſerves the harmony of " the conſtitution. By the ſame right that " one prerogative is aſſumed without law, " another may alſo be claimed, and another, " with ſtill greater facility; while the firſt " uſurpations both ſerve as precedents to the " following, and give force to maintain them. " Hence the heroiſm of HAMPDEN's conduct, " who ſuſtained the whole violence of royal " proſecution, rather than pay a tax of twen- " ty ſhillings, not impoſed by parliament; " hence the care of all ENGLISH patriots to " guard againſt the firſt encroachments of " the Crown; and hence alone the exiſtence, " at this day, of ENGLISH libert y.

" There is, however, one occaſion, where " the parliament has departed from this max- " im; and that is, in the *preſſing of ſeamen*. " The exerciſe of an irregular power is here " tacitly permitted in the crown; and tho' " it has frequently been under deliberation, " how that power might be rendered legal, " and granted, under proper reſtrictions to

" the

" the ſovereign, no ſafe expedient could ever
" be propoſed for that purpoſe; and the dan-
" ger to liberty always appeared greater from
" law than from uſurpation. While this
" power is exercíſed to no other end than to
" man the navy, men willingly ſubmit to it,
" from a ſenſe of it's uſe and neceſſity; and
" the ſailors, who are alone affected by it, find
" no body to ſupport them, in claiming the
" rights and privileges, which the law grants,
" without diſtinction, to all ENGLISH ſub-
" jects. But were this power, on any occa-
" ſion, made an inſtrument of faction, or mi-
" niſterial tyranny, the oppoſite faction, and
" indeed all lovers of their country, would
" immediately take the alarm, and ſupport
" the injured party; the liberty of ENGLISH-
" MEN would be aſſerted; juries would be
" implacable; and the tools of tyranny, act-
" ing both againſt law and equity, would
" meet with the ſevereſt vengeance. On the
" other hand, were the parliament to grant
" ſuch an authority, they would probably fall
" into one of theſe two inconveniencies:
" They would either beſtow it under ſo ma-
" ny reſtrictions as would make it loſe it's
" effect, by cramping the authority of the
" crown; or they would render it ſo large
" and comprehenſive, as might give occaſion

" to great abuſes, for which we could, in " that caſe, have no remedy. The very ir- " regularity of the practice, at preſent, pre- " vents it's abuſe, by affording ſo eaſy a re- " medy againſt them.

" I pretend not, by this reaſoning, to exclude " all poſſibility of contriving a regiſter for ſea- " men, which might man the navy, without " being dangerous to liberty. I only obſerve, " that no ſatisfactory ſcheme of that nature " has ever been propoſed. Rather than a- " dopt any project hitherto invented, we con- " tinue a practice ſeemingly the moſt abſurd " and unaccountable. Authority, in times of " full internal peace and concord, is armed " againſt law. A continued violence is per- " mitted in the crown, amidſt the greateſt " jealouſy and watchfulneſs in the people; " nay proceeding from theſe very principles; " Liberty, in a country of the higheſt liberty, " is left entirely to its own defence, without " any countenance or protection: The wild " ſtate of nature is renewed, in one of the " moſt civilized ſocieties of mankind: And " great violence and diſorder are committed " with impunity; while the one party pleads " obedience to the ſupreme magiſtrate, the o- " ther the ſanction of fundamental laws."

APPEN-

APPENDIX.

NUMBER I.

The Writ addreſſed to the Barons of Rye, cited page 74, being by miſtake not truly quoted, nor fully ſtated, it has been thought proper to print it here at length.

Cl. 17 Jo. m. 7. dorſe.

Rex, baronibus ſuis de Rya ſalutem. Mandamus vobis quod in fide qua nobis tenemini, et ſicut omnia veſtra deligitis, ſtatim, viſis litteris iſtis, omni dilatione et occaſione poſt poſitis, *venire faciatis, uſque in os Thameſie, omnes naves* Naves. que in receptione litterarum iſtarum, *in portu veſtro invente fuerint, et in eis quatuor de melioribus hominibus* ville veſtre *de diſtricte et aperte nobis ſcire faciant*, quot naves illuc venerint, et quales, Homines. et quorum ſint, et de illis navibus, quæ ad preſens in portu veſtro invente non fuerint, et de villa veſtra ſint. Similiter nobis ſcire faciant quorum illi fuerint, et quot, et quo ierint faciatis etiam, omnes naves, que poſt ſuſceptionem letterarum iſtarum in portum veſturum venerint in os Thameſe ſine dilatione tranſmitti numerum illorum, et quorum fuerint nobis ſignificatis. Teſte Rege apud Rading, 13tio die Aprilis.

Eodem modo ſcribitur de (1) Gipewic, (2) Gernem. et Norwic, Orewell, Oreford, Sca Oſitha, Sandwic, Dover et Haſtings, (3) Heda, (4) Rumenel, et (5) Wincheſt. (6) Sorham,

(1) Ipſwich. (2) Yarmouth. (3) Hythe.
(4) Romney. (5) Winchester. (6) Shoreham.

Porteſm. Sutht. Exon. Briſtoll, Boſcham, Peveneſey, Dunwic. Lenn.—Teſte ut ſupra.

The Writ was directed to all the above-mentioned places, as well as to the Barons of Rye.

NUMBER II.

The following is an Extract from the Black Book of the Admiralty, p. 26, 27. 12 Ed. 3. as it is cited and commented on by Mr. Molloy, vol. i. p. 133.

By the Laws of *England* there is no queſtion, but the King may ſeize, and it appears by very many ancient Records, that he might do it, and it was one of the Articles of Enquiry amongſt others; "Item, ſoit enquis de Nefs, que ſont arreſtees pour le ſervice du Roy, ou pour autre raiſonable cauſe per les Officers du Roy, ou de l'Admiral, et debriſent l'Arreſt, et par les quelles avandictes Nefs ſont emmenez, et retamer les Mariners qui ſont ordonnez pour le ſervice du Roy; et ſi retracent, et en cas que homme ſoit endite qui la debruſe l'Arreſt en ſa Nef arreſtee pour le ſervice du Roy, et de ce ſoit convicte par xii. il perdra ſa Nef ſi'l na grace du Roy ou du hault Admiral, et pour ce quil a eſte pluſieurs fois debatu en Angleterre pour les arreſtes des Nefs, quant le Roy amande Sergeants d'Arms, ou autre Miniſtres pour arreſter Nefs al oeps du Roy, et les Seigneurs des Nefs ſont venus devant l'Admiral, et alleguent que leurs Nefs neſtoient mye arreſtees,

P. 26 and 27. 6 Joh. m. 11. 9 Joh. m. 3. 24 E. 2. m. 17. 11 R. 2. m. 13. Rott. Franc.

tees, ordonne eſtoit au temps du Roy *Richard le Premier* a *Grimſby* per advis de pluſieurs Seigneurs du Royalme, que quant Nefs ſeront arreſtees pour ſervice du Roy, que le Roy eſcripta par ſes Lettres Patentes a l'Admiral d'arreſter les Nefs plus ou moins a la voulonte du Roy, et ſelon ce quil a beſoin, et l'Admiral eſcripta au Roy ou au Chancelier d'Angleterre les Noms des Nefs ainſi arreſtees aſſemblement avec les noms des Seigneurs et Maiſtres d'icelles, et en tel cas le Seigneur de la Nef ne la Maiſtre ne viendrout pas a dire que la Nef neſtoit mye arreſtee ne a ce ne ſeront oyz," and that upon ſuch Arreſts broken, the Parties might be puniſhed and fined.

Again, *Inquiratur ſi arreſtatus, ad ſerviendum Regi fregit arreſtum, hujuſmodi tranſgreſſor ſtat in gratia Regia ſive Admiralli ſui utrum voluerint committere Carceribus mancipandum vel finem facere, in hac parte ſi arreſtum hujuſmodi factum manifeſtum fuerit cognitum.* De Offic. Admiral. Angliæ per Roughton, Artic 10.

If the *Admiral* by the King's Command arreſts any Ships for the King's Service, and he or his Lieutenant return and certify the Arreſt, or a Liſt of the Ships arreſted into *Chancery*, no Maſter or Owner of the Ships ſo arreſted ſhall be received to plead againſt the Return, " pur ceo que l'Admiral et ſon Lieutenant ſont de Record." The Black Book of the Admiralty, fol. 28, 29. 157, 158. 15 R. 2. c. 3.

Item, *Inquirendum de omnibus Navibus quæ ad ſerviendum Domino Regi ſuper mari arreſtatæ fuerint, & poſtea Domini, poſſeſſores, ſive Magiſtri dolo & fraude à ſervitio hujuſmodi ſe ſubtraxerunt in deceptionem Domini Regis, qui ſi inde poſtea indictati fuerint, & convicti ſuper hoc, naves ſuæ Domino Regi forisfactæ per ordinationem Domini*

Regis

Regis Richard Primi; *& ſi Domini, Poſſeſſores, vel Magiſtri hujuſmodi inde coram Domino Rege & Cancellario ſuo per aliquas allegationes ſe aut naves hujuſmodi excuſare voluerint, ſi Admirallus vel locum tenentes ſui per Literas ſuas Patentes de arreſto hujuſmodi facto fidem fecerint plenorem, Domini, Poſſeſſores, aut Magiſtri prædicti nullo modo audiri debent, ſeu eis fides quovis modo adhiberi, eo quod Admirallus & locum tenentes ſui ſunt de recordo.*

Crooke's Arg. in Hampden's Caſe, fol. 79, to 100. Vid State Trials Vol. I.

And if the Ship ſo arreſted break the Arreſt, and the Maſter or Owner thereof be indicted and convicted, *devant l'Admiral*, by the Oath of twelve men, the Ship ſhall be confiſcated to the King, which power the *General* maintains in all places where he has power, and the ſame ſeems to be provided for in the letter *Clauſe of* 15 *R.* 2. *Ca.* 3.

FINIS.

